

Environmental Remediation of Per- and Polyfluoroalkyl Substances (PFAS)

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Per- and polyfluoroalkyl substances (PFAS) are a large, diverse group of fluorinated compounds that have been used in numerous commercial, industrial, and military applications. Among other uses, PFAS have been used in fire-fighting foams and in the processing and manufacture of many commercial products. Multiple PFAS—primarily perfluorooctanoic acid (PFOA) and perfluorooctane sulfonate (PFOS)—have been detected in soil, surface water, and groundwater in numerous locations across the country.

The Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA; P.L. 96-510) authorizes the federal government to respond to releases or threatened releases of hazardous substances, pollutants, or contaminants into the environment. The U.S. Environmental Protection Agency (EPA) administers the federal Superfund program to carry out CERCLA authorities on nonfederal lands. CERCLA establishes a broad liability scheme that holds past and current owners and operators of facilities from which a release (or threatened release) of hazardous substances in the environment occurs financially responsible for cleanup costs, natural resource damages, and the costs of federal public health studies.

In 2024, EPA designated PFOA and PFOS as CERCLA hazardous substances. Entities responsible for releases of these substances may be subject to the CERCLA liability framework. Also in 2024, EPA issued an enforcement discretion and settlement policy explaining how the agency would exercise its enforcement discretion under CERCLA in matters involving PFAS. That memorandum describes categories of entities where EPA “does not intend to pursue otherwise potentially responsible parties where equitable factors do not support seeking response actions or costs under CERCLA.” These categories include community water systems, publicly owned treatment works, publicly owned/operated municipal solid waste landfills, publicly owned airports and local fire departments, and farms where biosolids are applied to the land. EPA’s enforcement discretion and settlement policy is nonbinding and not legally enforceable.

Congress continues to consider whether and how to provide liability exemptions under CERCLA for PFOA and PFOS. On one hand, liability exemptions may provide relief for certain categories of entities that may not have been involved with the manufacturing or use of PFOA and PFOS. On the other hand, a CERCLA liability exemption could limit the ability of EPA to pursue responsible parties to fund environmental remediation at some sites. Members have introduced legislation in the 119th Congress to provide statutory liability exemptions for some of these categories of entities. For example, the Water Systems PFAS Liability Protection Act (H.R. 1267) would provide statutory liability exemptions for PFAS for certain categories of entities. However, no PFAS liability exemption bills have been enacted to date. CERCLA authorizes statutory exemptions or defenses to liability for certain situations, but not necessarily for specific chemicals or compounds. The extent to which Congress would provide PFAS- or category-specific exemption remains a policy issue for Congress.

The Department of Defense (DOD) has responded to releases of PFAS from the use of aqueous film forming foam (AFFF) at active and decommissioned U.S. military installations under the Defense Environmental Restoration Program (DERP), in conjunction with its delegated CERCLA response authorities. Those response actions to address PFAS are subject to the requirements of CERCLA. Through FY2025, DOD estimated that total actual obligations were \$3.3 billion (in current dollars) for investigating and remediating PFAS releases at active U.S. military installations, closed Base Realignment and Closure (BRAC) locations, Formerly Used Defense Sites (FUDS), and National Guard facilities combined. Additionally, DOD estimated \$10.2 billion in additional funding would be necessary to complete these actions at all eligible sites from the end of FY2024 into the future. Funding for DOD to carry out its statutory obligation to respond to PFAS releases is subject to annual appropriations, and DOD prioritizes these funds among eligible sites across the United States.

The pace of environmental remediation and adequacy of funding levels to address PFAS at U.S. military facilities continue to be issues for Congress. Congress has modified DOD program requirements to address and report on PFAS remediation activities in provisions included in National Defense Authorization Acts (NDAA). In addition to legislative options, Congress may consider other oversight options to evaluate the adequacy of pacing, such as conducting hearings or requiring the Government Accountability Office or the Office of Inspector General to examine specific aspects of the program. Additionally, Congress may consider whether appropriation levels are sufficient to meet funding needs to investigate and remediate PFAS at these sites.

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Introduction

Per- and polyfluoroalkyl substances (PFAS) are a large, diverse group of fluorinated compounds that have been used in numerous commercial, industrial, and military applications. Among other uses, PFAS have been used in fire-fighting foams and in the processing and manufacture of many commercial products (e.g., nonstick cookware and stain- and water-resistant fabrics).¹ PFAS are persistent in the environment, and studies of several PFAS indicate that exposures above certain levels may lead to adverse health effects.² In 2006, chemical manufacturers and EPA initiated the PFOA Stewardship Program to reduce the extent to which PFOA and other PFAS enter the environment by 95% below 2010 levels and to completely phase-out the manufacture of these chemicals by 2015.³ According to EPA, “[a]ll participating companies state that they met the PFOA Stewardship Program goals.”⁴

PFAS have been detected in soil, surface water, groundwater, and public water supplies in numerous locations since that time.⁵ These detections have been associated primarily with releases from manufacturing and processing facilities, and from U.S. military installations and other facilities (e.g., civilian airports and fire departments) that have used aqueous film forming foam (AFFF). AFFF is a fire suppressant designed for petroleum-based liquid fuels fires. These detections have led to increased federal action to prevent and mitigate exposure to PFAS.⁶

Enacted in 1980, the Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA; P.L. 96-510) authorizes the federal government to respond to releases or threatened releases of hazardous substances, pollutants, or contaminants into the environment.⁷ The U.S. Environmental Protection Agency (EPA) administers the federal Superfund program to carry out CERCLA authorities on nonfederal lands. CERCLA established a broad liability scheme that holds past and current owners and operators of facilities from which a release (or threatened release) of hazardous substances in the environment occurs financially responsible for cleanup costs, natural resource damages, and the costs of federal public health studies.⁸ Those who arrange for disposal of hazardous substances and those who transport hazardous substances could also be liable under CERCLA. Under CERCLA, a liable party may be responsible for some or all

¹ For background information, see U.S. Environmental Protection Agency (EPA), *EPA’s Per- and Polyfluoroalkyl Substances (PFAS) Action Plan*, February 2019, https://www.epa.gov/sites/default/files/2019-02/documents/pfas_action_plan_021319_508compliant_1.pdf.

² See EPA, “Our Current Understanding of the Human Health and Environmental Risks of PFAS,” updated July 14, 2026, <https://www.epa.gov/pfas/our-current-understanding-human-health-and-environmental-risks-pfas>; U.S. Centers for Disease Control and Prevention (CDC), “How PFAS Impacts Your Health,” July 2025, <https://www.atsdr.cdc.gov/pfas/about/health-effects.html>.

³ For more information, see EPA, “Fact Sheet: 2010/2015 PFOA Stewardship Program,” March 4, 2021, <https://www.epa.gov/assessing-and-managing-chemicals-under-tsca/fact-sheet-20102015-pfoa-stewardship-program>.

⁴ For more information, see EPA, “Fact Sheet: 2010/2015 PFOA Stewardship Program,” March 4, 2021, <https://www.epa.gov/assessing-and-managing-chemicals-under-tsca/fact-sheet-20102015-pfoa-stewardship-program>.

⁵ Primarily, perfluorooctane sulfonate (PFOS), perfluorooctanoic acid (PFOA), and certain other related perfluoroalkyl substances accounted for most of the historical production of PFAS prior to their phase-out. For more information, see “Voluntary Industry Phase-Out” in CRS Report R45986, *Federal Role in Responding to Potential Risks of Per- and Polyfluoroalkyl Substances (PFAS)*, coordinated by Elena H. Humphreys.

⁶ See EPA, “Key EPA Actions to Address PFAS,” updated July 1, 2026, <https://www.epa.gov/pfas/key-epa-actions-address-pfas>.

⁷ 42 U.S.C. Chapter 103. Also see CRS Report R48630, *Federal Environmental Remediation Under the Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA)*, a.k.a. “the Superfund Law”, by Lance N. Larson.

⁸ 42 U.S.C. §9607.

of the response costs associated with a release. To date, two PFAS—perfluorooctanoic acid (PFOA) and perfluorooctane sulfonate (PFOS)—have been designated as CERCLA hazardous substances.⁹ Thus, a variety of parties could be liable under CERCLA for costs related to a release of PFOA and/or PFOS. For any site, a liability determination under CERCLA is a site-specific and fact-specific inquiry.

Since the designation of PFOA and PFAS as hazardous substances, Congress has considered statutory liability exemptions for certain categories of entities that own or operate facilities where PFAS may pass through, but whose operations do not manufacture or use PFAS, commonly referred to as *passive receivers*.¹⁰ These entities may include community water systems, publicly owned treatment works (POTWs),¹¹ publicly owned/operated municipal solid waste landfills, publicly owned airports, local fire departments, and farms where biosolids are applied to the land. Supporters of these proposals may argue these entities did not use or manufacture PFAS or were required to use PFAS-containing materials as part of a federal requirement. Opponents of these proposals argue that the current liability framework under CERCLA is adequate for shielding innocent parties from CERCLA liability, in addition to EPA's PFAS enforcement discretion and settlement policy. Although CERCLA currently authorizes some exemptions from liability, those exemptions focus on specific situations that may not apply to PFAS releases for these types of entities.¹² CERCLA does not provide statutory exemptions from liability for releases of a specific hazardous substance.

The Department of Defense (DOD)¹³ and other federal agencies have also used CERCLA authorities to respond to releases of various PFAS, in addition to other chemical contaminants, at current and former federal facilities.¹⁴ DOD response actions taken under the Defense Environmental Restoration Program (DERP) are subject to CERCLA requirements.¹⁵ These program authorities generally apply to releases of hazardous substances, pollutants, or contaminants at facilities or sites that are or were owned by, leased to, or otherwise possessed by the federal government, and under the jurisdiction of DOD at the time of the release. Congress

⁹ EPA, “Designation of Perfluorooctanoic Acid (PFOA) and Perfluorooctanesulfonic Acid (PFOS) as CERCLA Hazardous Substances,” 89 *Federal Register* 39124-39192, May 8, 2024.

¹⁰ *Passive receiver* is not a statutory or regulatory term. For further discussion, see section “Who May Be Liable Under CERCLA.”

¹¹ Per 40 C.F.R. §403.3(q), a *publicly owned treatment works* (POTW) is a treatment works as defined by Clean Water Act (CWA) Section 212, which is owned by a state or municipality (as defined by CWA Section 502(4)). The definition includes any devices and systems used in the storage, treatment, recycling, and reclamation of municipal sewage or industrial wastes of a liquid nature. It also includes sewers, pipes, and other conveyances only if they convey wastewater to a POTW. The term also includes the municipality that has jurisdiction over the indirect discharges to and the discharges from the treatment works. See CRS Report R45998, *Contaminants of Emerging Concern Under the Clean Water Act*, by Laura Gatz.

¹² For more information, see “Limitations on Liability” section in CRS Report R48630, *Federal Environmental Remediation Under the Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA)*, a.k.a. “the Superfund Law”, by Lance N. Larson.

¹³ Since September 5, 2025, the Department of Defense (DOD) has been “using a secondary Department of War designation” under Executive Order 14347. See CRS In Focus IF10543, *Defense Primer: The Department of Defense*, coordinated by Michael J. Vassalotti.

¹⁴ This report discusses only DOD's authorities and programmatic issues associated with the Defense Environmental Restoration Program. The remediation of federal facilities is funded under separate programs administered by the department or agency with administrative jurisdiction over the facility, subject to EPA and state oversight. Those other federal departments' and agencies' activities to address PFAS are not discussed here.

¹⁵ 10 U.S.C. §2701(c).

has modified DOD program requirements to address and report on PFAS remediation activities in provisions included in National Defense Authorization Acts (NDAAAs).¹⁶

In the context of addressing and remediating PFAS in the environment, this report provides background and overview of CERCLA and its liability framework, a description and analysis of key issues for selected categories of entities regarding CERCLA liability and PFAS, and a discussion of the status of implementation of DOD's activities to address PFAS on military installations. This report does not address all issues relating to PFAS liability and remediation, including the management and disposal of PFAS-containing materials and wastes, federal efforts to transition away from the procurement and use of PFAS-containing firefighting foams, and authorities and actions taken to address PFAS under other federal laws.

Environmental Remediation Under CERCLA

CERCLA authorizes certain actions in response to a release of a hazardous substance, pollutant, or contaminant. CERCLA also establishes a liability framework to hold certain parties financially responsible for certain costs associated with a release.

CERCLA Response Authority

Section 104(a) of CERCLA authorizes the President to respond to a release (or substantial threat of a release) of a hazardous substance into the environment, or of a pollutant or contaminant that may present an “imminent and substantial danger to the public health or welfare.”¹⁷ The President has delegated CERCLA's response authority to EPA and other agencies that administer federal facilities.¹⁸ The definitions in Section 101 of *release*, *hazardous substance*, and *pollutant or contaminant*—and, by extension, EPA's response authority—exclude multiple types of releases and substances.¹⁹

CERCLA response actions for the purposes of cleanup fall into two categories. *Removal actions* are generally shorter-term actions taken to address immediate risks.²⁰ *Remedial actions* are generally longer-term actions to address contamination more permanently and may involve long-term containment of wastes in place.²¹

The level of cleanup required under CERCLA is dependent on the specific conditions at a particular site. Section 121(d) specifies that the selected remedial action “shall attain a degree of cleanup . . . and of control of further release at a minimum which assures protection of human health and the environment.”²² Section 121(d) further specifies that a cleanup must comply with

¹⁶ For example, see “Relevant Legislation” in CRS Report R45986, *Federal Role in Responding to Potential Risks of Per- and Polyfluoroalkyl Substances (PFAS)*, coordinated by Elena H. Humphreys.

¹⁷ 42 U.S.C. §9604(a).

¹⁸ 42 U.S.C. §9615. For more general information regarding the Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA), see CRS Report R48630, *Federal Environmental Remediation Under the Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA)*, a.k.a. “the Superfund Law”, by Lance N. Larson.

¹⁹ 42 U.S.C. §9601. These exclusions include, for example, releases of petroleum and certain types of nuclear materials.

²⁰ 42 U.S.C. §9601(23).

²¹ 42 U.S.C. §9601(24).

²² 42 U.S.C. §9621(d)(1).

applicable, relevant, and appropriate requirements (ARARs), including standards or requirements set forth in federal or state environmental or facility siting laws.²³

CERCLA also identifies two sets of federal standards under other statutes that apply to the selection of remedial actions at any site (so long as those standards are relevant and appropriate to the circumstances of an individual release or threatened release). First, Section 121(d) requires remedial actions to achieve a level of cleanup that at least attains maximum contaminant level (MCL) goals established under the Safe Drinking Water Act.²⁴ Second, the cleanup must be consistent with any water quality criteria established under Sections 303 or 304 of the Clean Water Act (CWA).²⁵ Designation of MCLs or finalization of water quality criteria for any PFAS does not trigger any action under CERCLA, but those requirements could be incorporated into site-specific cleanup standards to the extent those requirements are deemed “relevant and appropriate,” consistent with the underlying premise of an ARAR.

CERCLA Liability

The scope of financial liability under CERCLA is narrower than the scope of EPA’s response authority under the statute. Under CERCLA, only parties responsible for the presence of a hazardous substance—not a pollutant or contaminant—at a site may be required to pay for cleanup costs.²⁶ Parties with specific relationships to contamination at a site may be held liable when there is (1) a release or threatened release (2) of a hazardous substance (3) from a facility into the environment (4) that causes the incurrence of response costs.²⁷ Liability under CERCLA may take the form of an obligation to carry out a response action, or an obligation to pay response

²³ 42 U.S.C. §9621(d)(2).

²⁴ 42 U.S.C. §9621(d)(2)(A)(ii); see also 42 U.S.C. §300g-1. EPA issued a final national primary drinking water regulation for six PFAS, including PFOA and PFOS, in April 2024. That regulation included maximum contaminant levels (MCLs) for PFOA and PFOS each at 4.0 parts per trillion. EPA, “PFAS National Primary Drinking Water Regulation,” 89 *Federal Register* 32532, April 26, 2024, <https://www.federalregister.gov/documents/2024/04/26/2024-07773/pfas-national-primary-drinking-water-regulation>. In May 2025, EPA announced that the agency would retain the 2024 drinking water standards for PFOA and PFOS. EPA, “EPA Announces It Will Keep Maximum Contaminant Levels for PFOA, PFOS,” press release, May 14, 2025, <https://www.epa.gov/newsreleases/epa-announces-it-will-keep-maximum-contaminant-levels-pfoa-pfos>. In May 2026, EPA proposed to extend compliance deadlines and rescind its regulatory determinations for the other PFAS addressed in the 2024 rule. EPA, “Extending the Compliance Deadline for the PFOA and PFOS Maximum Contaminant Levels,” 91 *Federal Register* 29425, May 20, 2026, <https://www.federalregister.gov/documents/2026/05/20/2026-10086/extending-the-compliance-deadline-for-the-pfoa-and-pfos-maximum-contaminant-levels>; EPA, “Rescission of Regulatory Determinations and Removal of Related Provisions for Four PFAS Substances (PFHxS, PFNA, HFPO-DA (GenX), and the Mixture of These Three PFAS Plus PFBS),” 91 *Federal Register* 29413, May 20, 2026, <https://www.federalregister.gov/documents/2026/05/20/2026-10085/rescission-of-regulatory-determinations-and-removal-of-related-provisions-for-four-pfas-substances>. Also see CRS Report R45793, *PFAS and Drinking Water: Selected EPA and Congressional Actions*, by Elena H. Humphreys.

²⁵ 42 U.S.C. §9621(d)(2)(A)(ii); see also 33 U.S.C. §§1313, 1314. EPA published final recommended water quality criteria for PFAS to protect aquatic life in October 2024 and draft recommended water quality criteria to protect human health in December 2024. EPA, “Final Recommended Aquatic Life Criteria and Benchmarks for Select PFAS,” 89 *Federal Register* 81077, October 7, 2024, <https://www.federalregister.gov/documents/2024/10/07/2024-23024/final-recommended-aquatic-life-criteria-and-benchmarks-for-select-pfas>; EPA, “Draft National Recommended Ambient Water Quality Criteria for the Protection of Human Health for Perfluorooctanoic Acid, Perfluorooctane Sulfonic Acid, and Perfluorobutane Sulfonic Acid,” 89 *Federal Register* 105041, December 26, 2024, <https://www.federalregister.gov/documents/2024/12/26/2024-30637/draft-national-recommended-ambient-water-quality-criteria-for-the-protection-of-human-health-for>. For additional discussion of the regulation of PFAS under the CWA, see CRS In Focus IF12148, *Regulating PFAS Under the Clean Water Act*, by Laura Gatz.

²⁶ See infra, “CERCLA Hazardous Substances.”

²⁷ For general overview of liability under CERCLA, see CRS In Focus IF11790, *Liability Under the Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA)*, by Kate R. Bowers; see also EPA, “Superfund Liability,” April 3, 2026, <https://www.epa.gov/enforcement/superfund-liability>.

costs incurred by another party.²⁸ In general, a party that incurs response costs under the conditions stated above may seek to recover some or all of those costs from other parties that are potentially liable for the costs under CERCLA.²⁹

Who May Be Liable Under CERCLA

CERCLA provides a mechanism to compel covered persons or potentially responsible parties (PRPs) to perform or pay for a cleanup of hazardous substances. Private parties and federal, state, and local governmental entities can be liable as PRPs.³⁰ CERCLA establishes financial liability for four categories of PRPs:

1. the current owner or operator of a facility;
2. former owners or operators of a facility at the time hazardous substances were disposed of there;
3. generators and parties that arranged for the transport, disposal, or treatment of hazardous substances; and
4. transporters of hazardous substances to a facility.³¹

Consideration of whether a party is liable as an owner, operator, generator, or transporter is a fact-specific inquiry based on the circumstances of an individual case. As a result, it is not possible to predict with certainty the kinds of entities that would face liability under CERCLA related to PFAS contamination. As discussed below, however, EPA has expressed an intent to refrain from taking enforcement action with respect to certain categories of entities that are associated with facilities or sites where PFAS was produced, used, or disposed, as well as to use settlement agreements to protect them from lawsuits brought by other parties. Additionally, because CERCLA liability extends to the federal government, DOD and other federal departments or agencies that released PFOA and PFOS, such as through the use of AFFF, are also potentially liable.

Some stakeholders have raised concerns regarding the potential liability of *passive receivers* such as drinking water treatment plants, municipal wastewater treatment facilities, solid waste landfills, and composting facilities.³² Although the term *passive receivers* is not defined in CERCLA, it is generally understood to refer to parties that receive media—for example, wastewater, stormwater, or municipal solid waste—containing PFAS (and other hazardous substances) but do not themselves manufacture or use those substances.³³ Release of this PFAS-containing media—for example, through the discharge of treated water—could result in liability under CERCLA for costs associated with responding to the release.³⁴ While some of CERCLA’s

²⁸ 42 U.S.C. §§9606(a), 9607(a).

²⁹ 42 U.S.C. §§9607(a), 9613(f). CERCLA does not provide a cause of action for members of the public at large, including those who may have been harmed by the release of hazardous substances, to seek damages from parties that are liable for response costs under CERCLA.

³⁰ See 42 U.S.C. §9601(21) (defining *person* as “an individual, firm, corporation, association, partnership, consortium, joint venture, commercial entity, United States Government, State, municipality, commission, political subdivision of a State, or any interstate body”).

³¹ 42 U.S.C. §9607(a).

³² For example, American Public Works Association, Comment Letter on Designation of Perfluorooctanoic Acid (PFOA) and Perfluorooctanesulfonic Acid (PFOS) as CERCLA Hazardous Substances, November 7, 2022, https://downloads.regulations.gov/EPA-HQ-OLEM-2019-0341-0344/attachment_1.pdf.

³³ See, for example, American Public Works Association, Comment Letter on Designation of Perfluorooctanoic Acid (PFOA) and Perfluorooctanesulfonic Acid (PFOS) as CERCLA Hazardous Substances.

³⁴ 42 U.S.C. §9607(a).

liability exemptions—such as CERCLA Section 101(10)’s exemptions for releases pursuant to certain federally permitted releases—may apply, passive receivers are sometimes named as defendants in third-party CERCLA contribution claims brought by PRPs seeking to recoup some of the cleanup costs for which they have been held liable.³⁵ Whether a particular passive receiver would be obliged to perform or pay for a cleanup of PFAS contamination under CERCLA would depend on numerous factors, including whether the entity was a generator, arranger, transporter, owner, or operator; whether there was a release of PFOS, PFOA, or another hazardous PFAS substance; the existence of a response action and the incurrence of response costs; the applicability of various defenses to and exemptions from liability; and (in the case of a federal cleanup effort) EPA’s exercise of enforcement discretion.

Questions have also arisen as to whether manufacturers of PFAS could be held liable for cleanup costs under CERCLA. A manufacturer could be liable if a release occurred as part of the manufacturing process at a site the manufacturer owned or operated.³⁶ If a company intended to dispose of a hazardous substance that it manufactured, it might also be liable as a party that arranged for the disposal of that substance.³⁷ In general, however, CERCLA does not provide a stand-alone mechanism for holding the manufacturer of a hazardous substance liable solely based on its manufacture of a chemical that another party released into the environment subsequent to purchase. Courts typically do not hold a manufacturer selling a “useful” commercial product liable under CERCLA for the hazardous substance contained in those products.³⁸ In 2009, the Supreme Court held that, although CERCLA liability would attach “if an entity were to enter into a transaction for the sole purpose of discarding a used and no longer useful hazardous substance,” an entity would not be liable as an arranger “merely for selling a new and useful product if the purchaser of that product later, and unbeknownst to the seller, disposed of the product in a way that led to contamination.”³⁹

Accordingly, the manufacturers of designated PFAS or products containing designated PFAS likely would not be liable under CERCLA simply because the chemicals were released into the environment, after manufacture, by other entities using those PFAS products and disposing of them or otherwise releasing them into the environment. If, on the other hand, the manufacturer took intentional steps to dispose of the PFAS-containing products or sold the products with the specific intent to dispose of them, a finding of arranger liability could be more likely. In any case, a court evaluating potential liability would closely examine the manufacturer’s intent, the nature of any transaction in selling products to its customers, and the nature and commercial value of the product being sold.⁴⁰ More commonly, however, PFAS manufacturers have faced suit under other laws, including state environmental laws and tort law.⁴¹

³⁵ For example, *Transportation Leasing Co. v. California*, 861 F. Supp. 931 (C.D. Cal. 1993).

³⁶ See 42 U.S.C. §9607(a).

³⁷ For example, *United States v. Gen. Elec. Co.*, 670 F.3d 377, 385–86 (1st Cir. 2012); *Cadillac Fairview/California, Inc. v. United States*, 41 F.3d 562, 566 (9th Cir. 1994).

³⁸ For example, *Fla. Power & Light Co. v. Allis Chalmers Corp.*, 893 F.2d 1313, 1317 (11th Cir. 1990) (holding that manufacturers of electrical transformers containing mineral oil contaminated with polychlorinated biphenyls were not liable under CERCLA absent evidence that the manufacturers intended to dispose of hazardous waste when selling the transformers).

³⁹ *Burlington N. & Santa Fe Ry. Co. v. United States*, 556 U.S. 599, 610 (2009).

⁴⁰ For example, *Cal. Dep’t of Toxic Substances Ctrl. v. Alco Pac., Inc.*, 508 F.3d 930, 938 (9th Cir. 2007).

⁴¹ See *infra*, “Remediation and Liability Under Other Federal and State Laws.”

Scope of Liability

Liability under CERCLA is retroactive, strict, and joint and several.⁴² *Retroactive liability* means that parties may be liable for response costs associated with a release of a hazardous substance prior to its designation as a hazardous substance and prior to CERCLA's enactment in 1980.⁴³ Under CERCLA's strict liability framework, a party may be liable regardless of whether it was negligent.⁴⁴ Under *joint and several liability*, any single party may be liable for all cleanup costs at a site if the harm is indivisible, even if other parties also contributed to the contamination.⁴⁵

PRPs in the listed categories are liable under CERCLA for cleanup costs incurred by the U.S. government or a state or tribe that are “not inconsistent” with the National Oil and Hazardous Substances Pollution Contingency Plan (NCP), the regulations governing response actions taken under CERCLA.⁴⁶ This means that after a government or private party incurs cleanup costs, it may sue one or more PRPs under CERCLA to recover those costs.⁴⁷ Those PRPs, in turn, often have the right under CERCLA to seek contribution from any other PRPs, and may seek to join them as additional parties to the same CERCLA action.⁴⁸ Although each of those PRPs is jointly and severally responsible for all of the applicable cleanup costs, this liability framework allows many parties that are potentially liable for the contamination at a given site to seek an equitable allocation of those costs in a single litigation.⁴⁹ This framework is also intended to encourage capable parties to carry out response actions even before liability is settled, and to ensure that response actions take place even if some PRPs are bankrupt, unable to be located, or otherwise unable to contribute.⁵⁰

PRPs are also liable for injury to natural resources, meaning that they must either restore natural resources that are injured as a result of a release or pay for restoring or replacing the injured or lost natural resources.⁵¹ Unlike claims for cleanup costs, claims for natural resource damages may

⁴² See EPA, “Superfund Liability.”

⁴³ See, for example, *United States v. Olin Corp.*, 107 F.3d 1506, 1514-1515 (11th Cir. 1997) (liability for discharge before enactment of CERCLA); *Lac Cruces v. The Lofts at Alameda, LLC*, 591 F. Supp. 3d 1038, 1048 (D.N.M. 2022) (liability for discharge before designation of chemical substance).

⁴⁴ See, for example, 42 U.S.C. §9607(a); see also *New York v. Shore Realty Corp.*, 759 F.2d 1032, 1044 (2d Cir. 1985) (rejecting causation requirement for CERCLA liability).

⁴⁵ See, for example, *Cooper Industries, Inc. v. Agway, Inc.*, 956 F. Supp. 240, 248 (N.D.N.Y. 1997) (“[I]f the defendant fails to prevail on the divisibility argument as to any particular CERCLA hazardous substance, it is jointly and severally liable for the entire response cost.”).

⁴⁶ 42 U.S.C. §9607(a).

⁴⁷ Parties may sue other potentially responsible parties (PRPs) under Section 107(a) when they have incurred cleanup costs and may recover costs that are necessary and consistent with the National Oil and Hazardous Substances Pollution Contingency Plan (NCP). See *United States v. Atl. Research Corp.*, 551 U.S. 128, 141 (2007). If a party resolves its CERCLA liability to the United States or a state in a settlement, that party cannot then be held liable for contribution claims by other PRPs regarding matters addressed in that settlement. 42 U.S.C. §9613(f)(2).

⁴⁸ 42 U.S.C. §9613(f)(1), (f)(3)(B).

⁴⁹ See 42 U.S.C. §9613(f)(1); see also, for example, *ASARCO LLC v. Atlantic Richfield Co., LLC*, 975 F.3d 859, 868-69 (9th Cir. 2020) (discussing allocation).

⁵⁰ See *Lyondell Chem. Co. v. Occidental Chem. Corp.*, 608 F.3d 284, 303 (5th Cir. 2010) (discussing allocation of “liability attributable to a party who is insolvent, cannot be located, or cannot be identified”); *United States v. R.W. Meyer, Inc.*, 932 F.2d 568, 573 (6th Cir. 1991) (noting the “legislative intent” of CERCLA to encourage “prompt cleanup of hazardous sites.”).

⁵¹ 42 U.S.C. §9607(a). For further discussion of natural resource damages, see EPA, “Natural Resource Damages: A Primer,” August 28, 2026, <https://www.epa.gov/superfund/natural-resource-damages-primer>.

be brought only by federal, state, or tribal trustees.⁵² Additionally, PRPs may be liable for the cost of natural resource damage assessments and federal public health studies at release sites.⁵³

CERCLA and its liability framework largely focus on cleanup actions and on the costs incurred for those actions. The scope of liability under CERCLA does not include product liability, liability for personal injury or property damages, or health effects or medical costs resulting from a release.⁵⁴ Such claims may be available under state law, including common law.⁵⁵ Additionally, the Federal Tort Claims Act authorizes some tort claims against the U.S. government, but not when claims implicate government actions involving the exercise of judgment or choice.⁵⁶

CERCLA provides for various statutory exclusions to the elements of liability. The definitions of *release* and *hazardous substance*—and, by extension, EPA’s response authority and parties’ liability for response costs—exclude multiple types of releases and substances.⁵⁷ Among the statute’s other exemptions to liability is an exemption for response costs or damages resulting from a federally permitted release.⁵⁸ In general, the statute defines *federally permitted release* as a release or discharge that is in accordance with a permit issued under an enumerated list of federal statutes, including the CWA, the Resource Conservation and Recovery Act (RCRA), and the Clean Air Act (CAA).⁵⁹ CERCLA further establishes defenses to and limitations on liability associated with certain kinds of releases or parties that further circumscribe the scope of liability under the statute.⁶⁰

⁵² 42 U.S.C. §9607(f).

⁵³ 42 U.S.C. §9607(a).

⁵⁴ See 42 U.S.C. §9607(a).

⁵⁵ See *Holloway v. Gaylord Chem.*, 922 F. Supp. 1154, 1159 (E.D. La. 1996) (“CERCLA neither supplants nor duplicates traditional tort remedies.”).

⁵⁶ 28 U.S.C. §§1346, 2680(a). The United States has invoked the discretionary function exemption to the Federal Tort Claims Act to argue that it is not liable in pending multidistrict litigation challenging the U.S. military’s use and handling of aqueous film forming foam (AFFF), which allegedly resulted in PFAS contamination of groundwater. See United States of America’s Memorandum of Law in Support of Its Omnibus Motion to Dismiss Pursuant to Federal Rule of Civil Procedure 12(b)(1), In re: Aqueous Film-Forming Foams Products Liability Litigation, MDL No. 2:18-mn-2873-RMG, ECF No. 4548 (D.S.C. Feb. 26, 2024). For additional information on the Federal Tort Claims Act, see CRS Report R45732, *The Federal Tort Claims Act (FTCA): A Legal Overview*, by Michael D. Contino and Andreas Kuersten.

⁵⁷ For example, 42 U.S.C. §§9601(22) (defining *release* to exclude, among other things, the “normal application of fertilizer”), 9601(14) (defining *hazardous substance* to exclude, among other things, certain petroleum and natural or synthetic gas products).

⁵⁸ 42 U.S.C. §9607(j).

⁵⁹ 42 U.S.C. §9601(10). Under Section 107(j) of CERCLA, recovery for response costs or damages resulting from a federally permitted release “shall be pursuant to existing law in lieu of” CERCLA. 42 U.S.C. §9607(j). Section 107(j) does not modify any obligations or liability under other state or federal law, including common law, for harm resulting from a release or for the costs of cleaning up a hazardous substance. If another statute or common law provides a cause of action associated with a federally permitted release, that cause of action remains available even though remedies under CERCLA do not.

⁶⁰ For example, 42 U.S.C. §§9607(b) (providing defenses to liability where an otherwise liable party can establish that a release or threat of release and resulting damages were caused solely by [1] an act of God; [2] an act of war; [3] an act or omission of a third party with whom the defendant has no contractual relationship, where the defendant exercised due care and took precautions against the third party’s foreseeable acts or omissions and their consequences; or [4] any combination of the three circumstances listed above), 9607(d) (providing exemptions for parties that are not responsible for contamination but volunteer to help with cleanup), 9607(n) (fiduciaries), 9607(p) (municipal solid waste generators), 9607(q) (contiguous landowners), 9607(r) (bona fide prospective purchasers), 9614(c) (service station dealers), 9619(a) (cleanup contractors).

Federal Enforcement Mechanisms

CERCLA establishes three mechanisms that EPA may use to enforce liability under the statute—that is, to require parties to bear the response costs for which CERCLA makes them liable. First, EPA can compel PRPs to perform a cleanup. Section 106(a) authorizes EPA to issue a unilateral administrative order, or to seek a judicial order, requiring a PRP to take actions to address “imminent and substantial endangerment to the public health or welfare or the environment” resulting from a release or threatened release of a hazardous substance.⁶¹ CERCLA also authorizes fines and punitive damages for noncompliance with such an order.⁶² If a party complies with an order and can establish that it is not liable under CERCLA or that the required cleanup actions were arbitrary and capricious, it may seek reimbursement from the Hazardous Substance Superfund Trust Fund (Superfund Trust Fund).⁶³ Alternatively, a liable party may seek to recover response costs from other PRPs.⁶⁴

Second, EPA can conduct a cleanup itself and seek to recover its response costs from one or more PRPs pursuant to Section 107(a).⁶⁵ These lawsuits are known as *cost recovery* actions. EPA typically pursues cost recovery after a removal action or one of its phases is completed.⁶⁶ States and tribes may also pursue cost recovery under Section 107(a). Cleanup actions must be “not inconsistent” with the NCP for the costs to be recoverable by the United States, states, or tribes.⁶⁷ Prior to seeking cost recovery from a PRP in court, EPA generally sends a written demand letter to that PRP that includes information about the site, the response action, costs already incurred or to be incurred, and a demand for payment.⁶⁸

Finally, EPA can enter into a negotiated settlement with PRPs to perform some or all of the cleanup. CERCLA authorizes EPA to enter into an agreement with a PRP to allow the PRP to conduct or finance a response action if EPA determines that the PRP will do so properly and promptly.⁶⁹ EPA’s preference is to seek to resolve liability through negotiated settlement agreements instead of pursuing a Section 106 order or a cost recovery action.⁷⁰ Consistent with the statute’s directive to facilitate settlement “[w]henver practicable and in the public interest” to expedite effective cleanups, and minimize litigation, the majority of cleanups are resolved through negotiated agreements.⁷¹

⁶¹ 42 U.S.C. §9606(a).

⁶² 42 U.S.C. §9606(b).

⁶³ 42 U.S.C. §9606(b).

⁶⁴ 42 U.S.C. §§9607(a), 9613(f).

⁶⁵ 42 U.S.C. §9607(a).

⁶⁶ See EPA, Office of Solid Waste and Emergency Response, “Cost Recovery Actions/Statute of Limitations,” OSWER Directive No. 9832.3-1A, p. 2, <https://www.epa.gov/sites/default/files/2013-10/documents/cosrec-lucero-mem.pdf>.

⁶⁷ 42 U.S.C. §9607(a).

⁶⁸ See EPA, Office of Solid Waste and Emergency Response, “Written Demand for Recovery of Costs Incurred Under the Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA),” OSWER Directive No. 9832.18, pp. 5-6, 8-9, <https://www.epa.gov/sites/default/files/2013-10/documents/demand-cercla-rpt.pdf>.

⁶⁹ 42 U.S.C. §§9604(a), 9622(a).

⁷⁰ EPA, “Negotiating Superfund Settlements,” May 18, 2026, <https://www.epa.gov/enforcement/negotiating-superfund-settlements>.

⁷¹ See *Atl. Richfield Co. v. Christian*, 590 U.S. 1, 22 (2020) (describing settlements as “the heart” of CERCLA and noting that EPA’s efforts to negotiate settlement agreements and issue cleanup orders account for approximately 69% of cleanup work under way as of 2020).

All settlement agreements under CERCLA must be in the public interest and consistent with the NCP.⁷² Depending on the nature of the agreement, EPA uses either administrative settlement agreements and consent orders or judicial consent decrees, the latter of which must be approved by a federal district court and are subject to an opportunity for public comment prior to entry.⁷³ Under Section 122, voluntary settlement agreements may include a covenant not to sue, which limits a PRP's future liability to the United States related to the release or threatened release.⁷⁴ Additionally, parties to voluntary settlement agreements receive protection from other types of CERCLA lawsuits.⁷⁵ A settlement with one PRP does not preclude EPA from taking action under Sections 106 or 107 with respect to other PRPs.⁷⁶

Some parties may have unique circumstances that affect EPA's settlement procedures. For example, Section 122(g)(1) of CERCLA directs EPA to negotiate expedited settlements "[w]henever practicable and in the public interest" with parties that contributed a relatively small amount of wastes to a site.⁷⁷ EPA maintains policies and streamlined model settlement documents that apply specifically to these de minimis contributors.⁷⁸ For other categories of parties, EPA may exercise its discretion and decline to pursue enforcement, as described below.

CERCLA Hazardous Substances

The scope of federal remediation authority and financial liability under CERCLA hinges in part on the nature of the substance that has been released. As noted above, EPA may respond to a release of a pollutant or contaminant that "may present an imminent and substantial danger to the public health or welfare."⁷⁹ The statute defines *pollutant or contaminant* to include but not be limited to

any element, substance, compound, or mixture, including disease-causing agents, which after release into the environment and upon exposure, ingestion, inhalation, or assimilation into any organism, either directly from the environment or indirectly by ingestion through food chains, will or may reasonably be anticipated to cause death, disease, behavioral abnormalities, cancer, genetic mutation, physiological malfunctions (including malfunctions in reproduction) or physical deformations, in such organisms or their offspring.⁸⁰

EPA is authorized to respond to releases or threats of releases of hazardous substances without first finding that the release may present an imminent and substantial danger to the public health or welfare.⁸¹

⁷² 42 U.S.C. §9622(a).

⁷³ 42 U.S.C. §9622(d)(1)(A).

⁷⁴ 42 U.S.C. §9622(c)(1).

⁷⁵ 42 U.S.C. §9613(f)(2).

⁷⁶ 42 U.S.C. §9622(c)(2).

⁷⁷ 42 U.S.C. §9622(g)(1).

⁷⁸ See EPA, Office of Waste Programs Enforcement, "Streamlined Approach for Settlements with De Minimis Waste Contributors under CERCLA Section 122(g)(1)(A)," OSWER Directive No. 9834.7-1D, <https://www.epa.gov/sites/default/files/2013-09/documents/app-deminimis-rpt.pdf>; EPA, "De Minimis Contributor Consent Decree," July 27, 2026, https://cfpub.epa.gov/compliance/models/view.cfm?model_ID=538; see also EPA, *Unique Parties and Superfund Liability*, August 4, 2026, <https://www.epa.gov/enforcement/unique-parties-and-superfund-liability>.

⁷⁹ 42 U.S.C. §9604(a)(1).

⁸⁰ 42 U.S.C. §9601(33). The definition of *pollutant or contaminant* expressly excludes petroleum and natural gas.

⁸¹ 42 U.S.C. §9604(a)(1).

Designation as a hazardous substance also imposes certain requirements in the event of a release. Releases of a hazardous substance PFAS are subject to the reporting requirements to the National Response Center for certain releases of hazardous substances pursuant to Section 103 of CERCLA.⁸² Failure to comply with those reporting requirements could result in criminal penalties.⁸³

A substance may be considered a hazardous substance for purposes of CERCLA based on either a designation pursuant to CERCLA itself or a designation under another statute to which CERCLA refers. Section 102 of CERCLA authorizes EPA to designate as hazardous substances elements, compounds, mixtures, solutions, and substances “which, when released into the environment may present substantial danger to the public health or welfare or the environment.”⁸⁴ Section 101(14) of the statute defines *hazardous substance* to include hazardous substances designated pursuant to Section 102.⁸⁵ It also defines the term with reference to several other statutes to include (1) any substance designated as a hazardous substance under Section 311(b)(2)(A) of the CWA; (2) a characteristic or listed hazardous waste under Section 3001 of RCRA; (3) any toxic pollutant listed under Section 307(a) of the CWA; (4) any hazardous air pollutant listed under Section 112 of the CAA; and (5) any imminently hazardous chemical or substance or mixture with respect to which EPA has taken action pursuant to Section 7 of the Toxic Substances Control Act (TSCA).⁸⁶

Approximately 800 substances are currently considered hazardous substances pursuant to CERCLA by virtue of their designation under one of the statutes cross-referenced in Section 101(14) of CERCLA.⁸⁷ On April 19, 2024, EPA announced a final rule designating PFOA and PFOS as hazardous substances pursuant to CERCLA.⁸⁸ The 2024 designation of PFOA and PFOS represents the first use of EPA’s designation authority under Section 102 of CERCLA.⁸⁹

Several industry groups sued EPA to challenge the 2024 designation rule. After the change in administration, EPA Administrator Lee Zeldin announced in September 2025 that EPA would retain the rule and continue to defend it in the ongoing litigation.⁹⁰ On August 18, 2026, the U.S. Court of Appeals for the D.C. Circuit unanimously upheld the rule.⁹¹ The court ruled that EPA had correctly interpreted the phrase “may present substantial danger” in CERCLA Section 102’s definition of *hazardous substance*.⁹² The court also determined that the cost-benefit analysis EPA

⁸² 42 U.S.C. §9603 (requiring “[a]ny person in charge of a vessel or an offshore or an onshore facility . . . to immediately notify the National Response Center” of a release of a hazardous substance).

⁸³ 42 U.S.C. §9603(b).

⁸⁴ 42 U.S.C. §9602(a).

⁸⁵ 42 U.S.C. §9601(14).

⁸⁶ 42 U.S.C. §9601(14).

⁸⁷ EPA, “CERCLA Hazardous Substances Defined,” December 29, 2025, <https://www.epa.gov/epcra/cercla-hazardous-substances-defined>.

⁸⁸ The rule designation was announced on April 19, 2024, and published on May 8, 2024. EPA, “Designation of Perfluorooctanoic Acid (PFOA) and Perfluorooctanesulfonic Acid (PFOS) as CERCLA Hazardous Substances,” 89 *Federal Register* 39124, May 8, 2024, <https://www.federalregister.gov/documents/2024/05/08/2024-08547/designation-of-perfluorooctanoic-acid-pfoa-and-perfluorooctanesulfonic-acid-pfos-as-cercla-hazardous>.

⁸⁹ See EPA, “Designation of Perfluorooctanoic Acid (PFOA) and Perfluorooctanesulfonic Acid (PFOS) as CERCLA Hazardous Substances, Proposed Rule,” 87 *Federal Register* 54415, 54421, September 6, 2022, <https://www.federalregister.gov/documents/2024/05/08/2024-08547/designation-of-perfluorooctanoic-acid-pfoa-and-perfluorooctanesulfonic-acid-pfos-as-cercla-hazardous>.

⁹⁰ EPA, “Trump EPA Announces Next Steps on Regulatory PFOA and PFOS Cleanup Efforts, Provides Update on Liability and Passive Receiver Issues,” press release, September 18, 2025, <https://www.epa.gov/newsreleases/trump-epa-announces-next-steps-regulatory-pfoa-and-pfos-cleanup-efforts-provides>.

⁹¹ *Chamber of Commerce v. EPA*, No. 24-1193, 2026 WL 2409748 (D.C. Cir. Aug. 18, 2026).

⁹² *Id.* at *5-9.

conducted as part of its PFAS designation rulemaking was reasonable and consistent with the Administrative Procedure Act's notice and comment requirement.⁹³

Remediation and Liability Under Other Federal and State Laws

Although not the focus of this report, laws other than CERCLA, at both the federal and state level, may provide for liability arising from PFAS contamination or provide authority for PFAS remediation. For example, in June 2026, the U.S. Department of Justice (DOJ) lodged a proposed consent decree with The Chemours Company (Chemours) that would resolve certain liabilities related to PFAS arising from alleged violations of three federal laws: CWA,⁹⁴ which regulates certain discharges into waters of the United States; RCRA,⁹⁵ which regulates the management and disposal of solid waste and hazardous waste; and TSCA,⁹⁶ which regulates production and use of certain chemicals.⁹⁷ The alleged CWA and RCRA violations arose from discharges and storage of certain pollutants, including PFAS, without a required permit or in violation of a permit issued under CWA or RCRA.⁹⁸ The alleged violations of TSCA arose from failure to comply with certain notice and recordkeeping requirements related to chemical manufacturing.⁹⁹ The draft consent decree includes substantial remediation project funding requirements, as well as requirements to demonstrate compliance with licensing and other requirements going forward.¹⁰⁰ In addition to injunctive relief, requiring defendants to take action to address pollution (or refrain from taking action to worsen pollution), these statutes may also make violators liable for financial penalties.¹⁰¹ The Chemours proposed consent decree, for example, includes a civil penalty of \$22,500,000.¹⁰²

In addition to federal law, many states and tribes have enacted separate authorities (often called “mini-Superfund laws”) for their own programs to clean up contaminated sites.¹⁰³ Section 114 of CERCLA specifically provides that states may impose additional liability or requirements with respect to the release of hazardous substances within their borders.¹⁰⁴ The regulations governing

⁹³ Id. at *9.

⁹⁴ 33 U.S.C. §1251 et seq. For further information on PFAS regulation under the Clean Water Act, see CRS In Focus IF12148, *Regulating PFAS Under the Clean Water Act*, by Laura Gatz.

⁹⁵ 42 U.S.C. §§6901 et seq.

⁹⁶ 15 U.S.C. §§2601 et seq.

⁹⁷ Notice of Lodging of Consent Decree and Request That the Court Take No Action Until a Motion for Entry Is Filed, *United States v. The Chemours Co.*, No. 26-cv-00418 (S.D. W. Va., June 24, 2026), ECF No. 2. The proposed consent decree would also resolve alleged violations of a West Virginia state law, Section 8 of the West Virginia Pollution Control Act, W.Va. Code §22-11-8.

⁹⁸ Complaint, *United States v. The Chemours Co.*, No. 26-cv-00418 (S.D. W. Va., June 24, 2026), ECF No. 1, pp. 58–69, 74–78.

⁹⁹ Complaint, *United States v. The Chemours Co.*, No. 26-cv-00418 (S.D. W. Va., June 24, 2026), ECF No. 1, pp. 70–74.

¹⁰⁰ Notice of Lodging of Consent Decree and Request That the Court Take No Action Until a Motion for Entry Is Filed, *United States v. The Chemours Co.*, No. 26-cv-00418 (S.D. W. Va., June 24, 2026), ECF No. 2, pp. 10-17.

¹⁰¹ See 33 U.S.C. §1319 (providing for civil and criminal penalties under the CWA); 15 U.S.C. §2615 (providing for civil and criminal penalties under the Toxic Substances Control Act [TSCA]); 42 U.S.C. §6928 (providing for civil and criminal penalties under the Resource Conservation and Recovery Act [RCRA]).

¹⁰² Notice of Lodging of Consent Decree and Request That the Court Take No Action Until a Motion for Entry Is Filed, *United States v. The Chemours Co.*, No. 26-cv-00418 (S.D. W. Va., June 24, 2026), ECF No. 2, p. 6.

¹⁰³ See EPA, “State Response Programs,” May 18, 2026, <https://www.epa.gov/enforcement/state-response-programs>; see also James B. Pollack et al., *PFAS Deskbook* (Environmental Law Institute, 2023), pp. 102-107 (discussing use of state mini-Superfund laws to address PFAS contamination).

¹⁰⁴ 42 U.S.C. §9614(a).

response actions taken under CERCLA (i.e., the NCP) specify procedures for EPA and states to enter into memoranda of agreement for carrying out cleanups.¹⁰⁵

These state-law analogues to CERCLA provide another potential source for PFAS liability and remediation. For example, New Jersey has obtained funding for PFAS abatement and restoration by taking legal action against PFAS manufacturers pursuant to its CERCLA analogue, the New Jersey Spill Compensation and Control Act.¹⁰⁶ Some state environmental remediation statutes cover PFAS substances not presently designated as hazardous substances under CERCLA. Washington State's Department of Ecology, for example, has determined that all PFAS are hazardous substances under the Washington Model Toxics Control Act, the state's environmental cleanup statute.¹⁰⁷ Another state, Maine, has taken a different approach, establishing a state fund to address PFAS contamination on agricultural land through direct assistance to farmers, monitoring contaminated sites, conducting research, and, in some cases, purchasing contaminated properties.¹⁰⁸

Additionally, other state laws, including tort laws, have been used to pursue entities that would not be considered PRPs under CERCLA and recover damages that are not recoverable under CERCLA. For example, New York recently brought suit against certain manufacturers of PFAS-containing products, alleging violations of state consumer protection statutes as well as public nuisance.¹⁰⁹ In addition to seeking to require these manufacturers to fund PFAS remediation efforts, New York is also seeking an order prohibiting further sale of PFAS-containing products without adequate warnings, a remedy not available under CERCLA.¹¹⁰ Similarly, thousands of plaintiffs have brought claims against manufacturers of AFFF—PFAS-containing products used to extinguish chemical fires—seeking to recover damages not available under CERCLA, specifically, for personal injury and property damage.¹¹¹

EPA's Superfund Program: Overview

EPA has investigated releases of PFOA and PFOS under the Superfund program at some sites located on nonfederal lands, in coordination with the states in which these sites are located. Sites investigated under the Superfund program have varied in terms of manufacturing and uses of PFAS.¹¹² CERCLA directs the President to incorporate procedures and standards for carrying out statutory requirements into federal regulations under the NCP.¹¹³

¹⁰⁵ See 40 C.F.R. §§300.500-300.525.

¹⁰⁶ Judicial Consent Order as to Defendants E.I. DuPont de Nemours and Co., The Chemours Co., The Chemours Co. FC, LLC, Dupont Specialty Products USA, LLC, Corteva, Inc., and Dupont de Nemours, Inc., *New Jersey v. E.I. Du Pont de Nemours and Co.*, No. 1:19-cv-14758-RMB-JBC, ECF No. 856 (D.N.J. Aug. 7, 2026).

¹⁰⁷ Washington Department of Ecology, "Ecology Concludes PFAS Compounds Are Hazardous Substances under MTCA," *Site Register*, p. 2, October 21, 2021, <https://apps.ecology.wa.gov/publications/documents/2109041u.pdf>.

¹⁰⁸ Me. Stat. tit. 7, §320-K.

¹⁰⁹ Office of New York Attorney General, "Attorney General James Sues Some of Nation's Largest Chemical Companies Over Toxic Pollution from Chemical Products," press release, July 9, 2026, <https://ag.ny.gov/press-release/2026/attorney-general-james-sues-some-nations-largest-chemical-companies-over-toxic>.

¹¹⁰ Office of New York Attorney General, "Attorney General James Sues Some of Nation's Largest Chemical Companies Over Toxic Pollution from Chemical Products."

¹¹¹ U.S. District Court for the District of South Carolina, "Aqueous Film-Forming Foams (AFFF) Products Liability Litigation MDL No. 2873," accessed September 2, 2026, <https://www.scd.uscourts.gov/mdl-2873/index.asp>.

¹¹² EPA, "National Enforcement and Compliance Initiative: Addressing Exposure to PFAS," updated March 9, 2026, <https://www.epa.gov/enforcement/national-enforcement-and-compliance-initiative-addressing-exposure-pfas>.

¹¹³ 40 C.F.R. Part 300.

The procedures that EPA established for carrying out the Superfund site remediation process are codified in federal regulation under the NCP.¹¹⁴ As described previously, CERCLA authorizes two types of response actions: removal and remedial actions.¹¹⁵ Both actions may involve various methods to prevent exposure to contamination. The NCP includes procedures for carrying out both removal actions that are intended to mitigate immediate risks, and more extensive remedial actions that are planned to ensure protection of human health and the environment over the long-term.¹¹⁶

In general, the Superfund remedial action process follows the order of stages below:¹¹⁷

- Preliminary Assessment/Site Inspection
- National Priorities List (NPL) Site Listing Process
- Remedial Investigation and Feasibility Study
- Record of Decision (ROD)
- Design/Remedial Action
- Construction Completion
- Post-Construction Completion (Operation and Maintenance)
- Deletion from the NPL

The completion of this process may take years or even decades at some sites, depending on the scope, magnitude, and complexity of the remediation. To address the site-specific complexities at a site, EPA divides up a site based on geographic location, chemicals present, and media affected, in administrative boundaries called operable units (OUs).¹¹⁸

In general, states have a prominent role in determining if and whether there is federal involvement under the Superfund program. For remedial actions, Section 104(c) of CERCLA requires EPA to consult with the state in which a Superfund site is located for determining the appropriate remedial action to be taken at the site.¹¹⁹ Section 104(c) of CERCLA also makes the obligation of federal Superfund appropriations to finance a remedial action conditional upon the state agreeing to share the costs and provide certain assurances.¹²⁰ The state cost share is generally 10% of the costs of construction and 100% of the costs of operation and maintenance upon the completion of construction, with the exception of surface water or groundwater treatment remedies, for which federal Superfund appropriations may pay 100% of the operation and maintenance costs for the first 10 years.¹²¹ Additionally, Section 128(b) of CERCLA limits EPA enforcement authority for a site where a response action has been taken in compliance with a state program, subject to certain enumerated exceptions.¹²²

¹¹⁴ 40 C.F.R. Part 300.

¹¹⁵ 42 U.S.C. §9601(23) and 42 U.S.C. §9601(24), respectively; see *supra* “CERCLA Response Authority.”

¹¹⁶ 40 C.F.R. Part 300, Subpart E.

¹¹⁷ For more information about activities and objectives of each stage, see EPA, “About the Superfund Cleanup Process,” September 22, 2025, <https://www.epa.gov/superfund/about-superfund-cleanup-process#pasi>.

¹¹⁸ EPA, “Operable Units,” April 21, 2026, <https://www.epa.gov/bpmd/operable-units>.

¹¹⁹ 42 U.S.C. §9604(c).

¹²⁰ 42 U.S.C. §9606.

¹²¹ 42 U.S.C. §9604(c).

¹²² 42 U.S.C. §9628(b).

Unlike remedial actions, CERCLA does not require states to agree to share the costs of removal actions, which typically are less costly as a result of their smaller scope.¹²³ Consequently, federal Superfund monies may be used to finance the entire costs of removal actions. For sites with financially viable PRPs associated with the release of a hazardous substance, EPA may require the PRPs to perform or pay for cleanup actions themselves.¹²⁴ Alternatively, EPA may clean up a contaminated site with Superfund monies and later pursue cost recovery of those funds from the PRPs (except for the cleanup of federal facilities, which must be funded up front by the administering agencies).¹²⁵ If PRPs are not financially viable or cannot be identified, Superfund monies may be used to pay the orphan shares of cleanup costs at a site.¹²⁶

CERCLA directed EPA to establish and maintain the NPL—a list of the most contaminated sites in the United States that present the greatest risks to human health and the environment—in order to prioritize cleanup actions.¹²⁷ The criteria for listing a site on the NPL, codified at 40 C.F.R. Part 300, Appendix A, are based on an evaluation of potential risks to human health and the environment using the CERCLA Hazard Ranking System.¹²⁸ The NPL includes both nonfederal sites and federal sites that are deemed to present a sufficient level of risk to warrant listing. As of September 25, 2026, EPA reported 1,337 NPL sites (1,180 nonfederal and 157 federal).¹²⁹ EPA has deleted 466 sites (448 nonfederal and 18 federal) from the NPL after determining, in concurrence with the relevant states, that the long-term cleanup objectives had been met.¹³⁰ EPA does not need NPL listing to carry out removal actions and maintains a database regarding removal actions.¹³¹

CERCLA requires EPA to conduct five-year reviews¹³² at those Superfund sites where a remedial action involves contamination remaining on-site and measures to prevent potentially harmful levels of exposure, such as waste caps, land use restrictions, or other institutional controls.¹³³ According to EPA, in general, “reviews take place five years following the start of a CERCLA response action, and are repeated every succeeding five years so long as future uses remain restricted.”¹³⁴ Superfund five-year reviews also may continue at some sites after deletion from the

¹²³ 40 C.F.R. §300.425(b)(1).

¹²⁴ 42 U.S.C. §9606(a).

¹²⁵ 42 U.S.C. §9607(a).

¹²⁶ See 42 U.S.C. §9622(b); see also Memorandum from Steve A. Herman, Assistant Administrator, Office of Enforcement and Compliance Assurance, EPA, to Regional Administrators, “Interim Guidance on Orphan Share Compensation for Settlers of Remedial Design/Remedial Action and Non-Time-Critical Removals,” June 3, 1996, <https://www.epa.gov/sites/default/files/2013-10/documents/orphan-share-rpt.pdf>.

¹²⁷ 42 U.S.C. §9605(a).

¹²⁸ EPA, “Hazard Ranking System (HRS),” September 22, 2025, <https://www.epa.gov/superfund/hazard-ranking-system-hrs>.

¹²⁹ EPA, “Superfund: National Priorities List (NPL),” September 25, 2026, <https://www.epa.gov/superfund/superfund-national-priorities-list-npl>.

¹³⁰ EPA, “Superfund: National Priorities List (NPL),” September 25, 2026, <https://www.epa.gov/superfund/superfund-national-priorities-list-npl>.

¹³¹ See EPA, “Cleanups and Grants Listing Page,” accessed September 2, 2026, <https://cimc.epa.gov/ords/cimc/f?p=CIMC:LIST>.

¹³² EPA, “Superfund: Five-Year Reviews,” August 28, 2026, <https://www.epa.gov/superfund/superfund-five-year-reviews>.

¹³³ 42 U.S.C. §9621(c).

¹³⁴ EPA, “Superfund: Five-Year Reviews.”

NPL to evaluate whether the remedial actions continue to be protective of human health and the environment post-deletion.¹³⁵

Funding for the Superfund Program

Regarding the funding for sites addressed under the Superfund program, in general, EPA attempts to identify and enforce liability on financially viable PRPs to provide resources for response actions prior to the expenditure of federal funds.¹³⁶ CERCLA authorizes the Superfund Trust Fund to finance the remediation of sites without financially viable PRPs to fulfill their liability.¹³⁷ CERCLA authorizes remedial actions to be funded by the Superfund Trust Fund only at sites listed on the NPL, whereas removal actions may be funded at non-NPL sites to address emergency situations.¹³⁸ As discussed previously, CERCLA requires the state in which a nonfederal NPL site is located to agree to share the costs of remedial actions at that site as a condition of obligating federal funds to finance those actions.¹³⁹

The source of revenues to the Superfund Trust Fund and allocation of financial responsibility for remediating environmental contamination has been a long-standing issue. Under current law, most revenues to the Superfund Trust Fund are sourced from two excise taxes and annual appropriations.¹⁴⁰ Those two excise taxes include an excise tax on crude oil and imported petroleum products (petroleum tax)¹⁴¹ and an excise tax on certain domestic chemical feedstocks and imported chemical derivatives (chemical tax).¹⁴² Congress authorized the petroleum tax without expiration and authorized the chemical tax through December 31, 2031.¹⁴³ Congress provides annual appropriations to the Hazardous Substance Superfund account within Interior, Environment, and Related Agencies Appropriations Acts.¹⁴⁴ In addition to these taxes and annual appropriations, the Superfund Trust Fund receives revenue from cost recoveries from PRPs, fines and penalties for violations of CERCLA, and interest on the balance of the trust fund.¹⁴⁵ These revenues have generally been less than annual appropriations and Superfund tax receipts.

In the agency's FY2027 Justification of Appropriation Estimates for the Committee on Appropriations, EPA reported an estimated \$1.6 billion of collections to be available from these two taxes for FY2026 (approximately \$700 million from the chemical tax and \$900 million from

¹³⁵ See EPA, *Five-Year Reviews, Frequently Asked Questions (FAQs) and Answers*, OSWER 9355.7-21, Document ID: 174052, pp. 5-7, <https://semspub.epa.gov/work/HQ/174052.pdf>.

¹³⁶ See CRS In Focus IF11790, *Liability Under the Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA)*, by Kate R. Bowers.

¹³⁷ For more information, see CRS In Focus IF11982, *The Hazardous Substance Superfund Trust Fund*, by Anthony A. Cilluffo and Lance N. Larson.

¹³⁸ 40 C.F.R. §300.425(b)(1).

¹³⁹ 42 U.S.C. §9604(c)(3).

¹⁴⁰ EPA, *Fiscal Year 2027, Justification of Appropriation Estimates for the Committee on Appropriations*, Tab 07: Superfund, April 2026, pp. 5-6 and pp. 96-97, https://www.epa.gov/system/files/documents/2026-06/tab-07_superfund.pdf.

¹⁴¹ Section 601 in Part 6 of Subtitle D of Title I of the Inflation Reduction Act (P.L. 117-169).

¹⁴² Section 80201 of Title II of Division H of the Infrastructure Investment and Jobs Act (P.L. 117-58).

¹⁴³ Section 80201(a)(1) of Title II of Division H of the Infrastructure Investment and Jobs Act (P.L. 117-58).

¹⁴⁴ For example, for FY2027 see H.R. 9171, Department of the Interior, Environment, and Related Agencies Appropriations Act, 2027.

¹⁴⁵ 26 U.S.C. §9507(b). Also see Office of Management and Budget, *Budget of the U.S. Government, Appendix, Fiscal Year 2027*, p. 1081, https://www.whitehouse.gov/wp-content/uploads/2026/04/appendix_fy2027.pdf.

the petroleum tax).¹⁴⁶ For FY2027, EPA estimates approximately \$1.7 billion of collections to be available from these two taxes.¹⁴⁷ EPA anticipates using these receipts to fully fund some aspects of the Superfund program, such as the Superfund: remedial program project.¹⁴⁸ In addition to the tax revenues, EPA requested \$290 million in annual appropriations for FY2027 to carry out or supplement funding for other aspects of the program.¹⁴⁹

In the 2024 final designation rule, EPA estimated that the designation of PFOA and PFOS would shift between \$10.3 million and \$51.7 million of annual response costs to be the responsibility of PRPs, rather than the federal government.¹⁵⁰ For non-NPL sites, EPA estimated that costs for response work to compel enforcement actions to address PFOA and PFOS as hazardous substances could range from \$327,000 to \$18.1 million annually.¹⁵¹ The final rule does not discuss how the underlying assumptions and these cost estimates may be affected by EPA's enforcement discretion policy, which is discussed in further detail in the following section.

Similar to other chemical contaminants addressed under the Superfund program, EPA does not list sites or funding needs specific to response actions for PFOA and PFOS. Therefore, the number of new NPL sites or CERCLA enforcement actions as a result of the PFOA and PFOS designation is not readily available. As a practical matter, PFAS may be co-located and remediated incidentally to other contaminants of concern at a particular site. Under certain conditions, a record of decision (ROD) may be amended by EPA and the support agency to include actions to address PFOA and PFOS at existing NPL sites.¹⁵² Thus, it may be challenging to quantify response costs, and who has borne those costs, associated with PFOA and PFOS hazardous substance designation. Whether any funding needs would arise from PFOA and PFOS for new sites or existing sites would depend on site-specific factors of potential risks posed at a site.

EPA Enforcement Discretion Policy

EPA response actions and cost recovery under CERCLA are discretionary.¹⁵³ CERCLA does not require EPA to take enforcement action with respect to every release of a hazardous substance over which the agency has response and enforcement authority. EPA may exercise its enforcement discretion on a site-by-site basis to pursue, or decline to pursue, cost recovery against PRPs that meet the statutory criteria for liability. When EPA does take action with respect

¹⁴⁶ EPA, *Fiscal Year 2027: Justification of Appropriation Estimates for the Committee on Appropriations*, Tab 07: Superfund, April 2026, p. 96, https://www.epa.gov/system/files/documents/2026-06/tab-07_superfund.pdf.

¹⁴⁷ EPA, *Fiscal Year 2027: Justification of Appropriation Estimates for the Committee on Appropriations*, Tab 07: Superfund, April 2026, p. 96, https://www.epa.gov/system/files/documents/2026-06/tab-07_superfund.pdf.

¹⁴⁸ According to EPA, the Superfund: remedial program “addresses many of the worst contaminated areas in the U.S. by investigating contamination and implementing long-term cleanup remedies at sites on the National Priorities List (NPL). The Program also oversees response work conducted by potentially responsible parties (PRPs) at NPL and Superfund Alternative Approach (SAA) sites.” EPA, *Fiscal Year 2027: Justification of Appropriation Estimates for the Committee on Appropriations*, pp. 87-88.

¹⁴⁹ EPA, *Fiscal Year 2027: Justification of Appropriation Estimates for the Committee on Appropriations*, p. 6.

¹⁵⁰ EPA, “Designation of Perfluorooctanoic Acid (PFOA) and Perfluorooctanesulfonic Acid (PFOS) as CERCLA Hazardous Substances,” 89 *Federal Register* 39129, May 8, 2024.

¹⁵¹ EPA, “Designation of Perfluorooctanoic Acid (PFOA) and Perfluorooctanesulfonic Acid (PFOS) as CERCLA Hazardous Substances,” 89 *Federal Register* 39129, May 8, 2024.

¹⁵² 40 C.F.R. §300.435(c)(2).

¹⁵³ See 42 U.S.C. §9604(a)(1) (“... the President is authorized to act . . .”); 42 U.S.C. §9607(c)(3) (“The President is authorized to commence a civil action . . .”); see also *Chamber of Comm. of the United States of America v. EPA*, No. 24-1193, 2026 WL 2409748, at *20 (D.C. Cir. Aug. 18, 2026) (“As EPA explained . . . ‘CERCLA response actions are discretionary, contingent, and site-specific determinations.’”).

to an individual site, the agency has discretion to pursue enforcement against one, some, or all PRPs, and to select which enforcement mechanism to apply.¹⁵⁴

On April 19, 2024, EPA issued an enforcement discretion and settlement policy explaining how the agency would exercise its enforcement discretion under CERCLA in matters involving PFAS.¹⁵⁵ In order to minimize parties being pursued for PFAS liability under CERCLA “even if the equities do not support seeking CERCLA response actions or costs” against them, EPA stated that it “intends to focus its enforcement efforts on entities who significantly contributed to the release of PFAS contamination into the environment, including parties that manufactured PFAS or used PFAS in the manufacturing process, federal facilities, and other industrial parties.”¹⁵⁶ As a result, the agency explained that it “does not intend to pursue otherwise potentially responsible parties where equitable factors do not support seeking response actions or costs under CERCLA.”¹⁵⁷ EPA identified five categories of entities against which it did not intend to pursue PFAS response actions or costs under CERCLA:

1. community water systems and publicly owned treatment works,
2. municipal separate storm sewer systems,
3. publicly owned or operated municipal solid waste landfills,
4. publicly owned airports and local fire departments, and
5. farms where biosolids are applied to the land.¹⁵⁸

EPA also identified several equitable factors that could form the basis for extending enforcement discretion to additional parties not in one of those five categories:

- whether an entity is a state, local, or tribal government or works on behalf of or conducts services that otherwise would be performed by a state, local, or tribal government;
- whether an entity performs certain defined public service roles related to drinking water, wastewater, and waste and pollution management;
- whether an entity manufactured PFAS or used PFAS as part of an industrial process; and
- whether and to what degree an entity is actively involved in the use, treatment, storage, disposal, or transport of PFAS.¹⁵⁹

Finally, in addition to its explaining how it would limit its own enforcement actions, EPA also described how it could use settlement agreements to protect entities from liability and lawsuits brought by other parties, or where entities demonstrated that payment could result in undue financial hardship.¹⁶⁰

EPA’s enforcement discretion policy is not binding on EPA. The agency retains authority to exercise its discretion in a different manner or to revoke or change its policy.

¹⁵⁴ See *United States v. Kramer*, 757 F. Supp. 397, 434 (D.N.J. 1991) (discussing EPA discretion to exclude municipalities from cost recovery actions).

¹⁵⁵ Uhlmann, “PFAS Enforcement Discretion and Settlement Policy Under CERCLA.”

¹⁵⁶ Uhlmann, “PFAS Enforcement Discretion and Settlement Policy Under CERCLA,” p. 6.

¹⁵⁷ Uhlmann, “PFAS Enforcement Discretion and Settlement Policy Under CERCLA,” pp. 2-3.

¹⁵⁸ Uhlmann, “PFAS Enforcement Discretion and Settlement Policy Under CERCLA,” pp. 6-8.

¹⁵⁹ Uhlmann, “PFAS Enforcement Discretion and Settlement Policy Under CERCLA,” pp. 8-9.

¹⁶⁰ Uhlmann, “PFAS Enforcement Discretion and Settlement Policy Under CERCLA,” pp. 9-10.

Issues by Select Categories of Entities

The categories of entities for which EPA does not intend to pursue enforcement under CERCLA for response costs associated with certain types of releases of PFOA and PFOS are discussed in the following sections. In general, other federal or state laws authorize the regulation of certain chemicals or wastes that are intended to prevent potentially harmful releases into the environment. These laws focus on specific environmental media or types of wastes (i.e., air emissions under the CAA, discharges into surface waters under the CWA, or disposal of hazardous or other solid wastes under the RCRA). States and tribes have a prominent role in enforcing requirements under some of these federal environmental laws. Even considering EPA's enforcement discretion policy, entities in these categories could still face obligations or liability under CERCLA in certain situations, as discussed below.

In past Congresses, bills have been introduced, but not enacted, that would have provided liability exemptions for certain entities.¹⁶¹ In the 119th Congress, the Water Systems PFAS Liability Protection Act (H.R. 1267) would provide CERCLA statutory liability exemptions for PFAS for certain categories of entities.¹⁶² Also in the 119th Congress, S.Amdt. 3363 to the NDAA for FY2026 (S. 2296) would have provided CERCLA liability exemptions to categories of entities as discussed in the following sections. Provisions in S.Amdt. 3363 were not included in the NDAA for FY2026.¹⁶³

The following sections provide a broad overview of liability issues and considerations associated with the five categories of entities identified in EPA's enforcement discretion policy.

Community Water Systems and Publicly Owned Treatment Works (POTWs)

EPA has taken regulatory actions to address PFAS under the Safe Drinking Water Act (SDWA) for community water systems¹⁶⁴ and under the CWA for POTWs.¹⁶⁵ Owners and operators of community water systems and POTWs operate facilities where PFAS may be present in water that flows through these facilities. As they do not manufacture or use PFAS in these operations, the presence of PFAS would depend on PFAS occurrence in source waters entering those facilities. Federal or state permitting requirements may regulate the discharge of pollutants, potentially including PFAS, into and from these facilities. CERCLA liability could arise in such situations where a downstream (i.e., downstream of the discharge from the facility) cleanup identifies these entities as potential contributors of the PFOA and PFOS.

In addition to the potential applicability of EPA's enforcement discretion policy, some community water systems regulated under the SDWA and POTWs subject to a CWA discharge permit may also be exempt from CERCLA liability if the release of PFAS from those facilities qualifies as a *federally permitted release* under Section 101(10) of CERCLA.¹⁶⁶ Exemptions for federally permitted releases are based on the presumption that regulation under another federal law would

¹⁶¹ This report may not include every bill introduced prior to the 119th Congress associated with PFAS liability exemptions. However, examples of bills introduced in the 118th Congress were S. 1433, S. 1432, S. 1430, S. 1429, and S. 1427. An example of a bill introduced in the 117th Congress is H.R. 2467. Examples of bills introduced in the 116th Congress are H.R. 535 and S. 638.

¹⁶² H.R. 1267.

¹⁶³ P.L. 119-60.

¹⁶⁴ See CRS Report R49007, *EPA's PFAS Drinking Water Regulation: Considerations for Congress*, by Elena H. Humphreys.

¹⁶⁵ See CRS In Focus IF12148, *Regulating PFAS Under the Clean Water Act*, by Laura Gatz.

¹⁶⁶ 42 U.S.C. §9601(10).

address potential risks.¹⁶⁷ Whether any particular entity could be liable for any particular release would be dependent on fact- and site-specific information about the nature of the facility, the release, and the relevant permits under other federal environmental laws.

In the 119th Congress, H.R. 1267 would provide CERCLA liability exemptions for certain covered PFAS releases¹⁶⁸ from

- A. a public water system (as defined in Section 1401 of the SDWA (42 U.S.C. §300f));
- B. a publicly or privately owned or operated treatment works (as defined in Section 212 of the CWA (33 U.S.C. §1292));
- C. a municipality to which a permit under Section 402 of the CWA (33 U.S.C. §1342) is issued for stormwater discharges;
- D. a political subdivision of a state or a special district of a state acting as a wholesale water agency; and
- E. a contractor performing the management or disposal activities described in subsection (c) for an entity described in any of subparagraphs (A) through (D).

That bill would not provide liability exemptions for releases if the entity acts with “gross negligence or willful misconduct in the discharge, disposal, management, conveyance, or storage of the covered” PFAS.¹⁶⁹ S.Amdt. 3363 would have provided CERCLA liability exemptions to a “water or wastewater entity,” which would have included the same entities as described in H.R. 1267.

Municipal Separate Storm Sewer Systems (MS4s)

CWA regulations define a *municipal separate storm sewer system* (MS4) as a conveyance or system of conveyances that is

- owned by a state, city, town, village, or other public entity that discharges to waters of the United States;
- designed or used to collect or convey stormwater (e.g., storm drains, pipes, ditches);
- not a combined sewer; and
- not part of a sewage treatment plant, or POTW.¹⁷⁰

MS4s can transport untreated pollutants in stormwater runoff to surface waters. Owners and operators of a regulated MS4 are required to obtain a CWA permit and develop stormwater management programs (SWMPs) to prevent untreated pollutants from being discharged to surface waters.¹⁷¹ The SWMP describes the stormwater control practices that will be implemented consistent with permit requirements to minimize the discharge of pollutants from the MS4.¹⁷²

¹⁶⁷ See *supra* “Scope of Liability.”

¹⁶⁸ Covered PFAS defined under the act would be broader and include other types of PFAS beyond PFOA and PFOS.

¹⁶⁹ H.R. 1267.

¹⁷⁰ 40 C.F.R. §122.26(b)(8).

¹⁷¹ 33 U.S.C. §1342(p). 40 C.F.R. §122.26.

¹⁷² See EPA, “Stormwater Discharges from Municipal Sources,” May 20, 2026, <https://www.epa.gov/npdes/stormwater-discharges-municipal-sources>.

Research has suggested relatively widespread occurrence and distribution of PFAS in the environment.¹⁷³ Storm incidents could carry PFAS and PFAS-containing materials distributed throughout the environment through storm water conveyance systems. To the extent that PFOA and PFOS may be transported through MS4s, owners and operators of MS4s could be identified as PRPs in the event of a downstream CERCLA response. Whether these owners and operators could be liable under CERCLA for any particular release would depend on fact- and site-specific information about the nature of the situation and the release. MS4 owners and operators could be eligible for a federally permitted release exemption depending on the terms of their CWA permit and their compliance with that permit. As mentioned previously, EPA does not intend to pursue liability against MS4s in the event of a CERCLA response.¹⁷⁴ A statutory liability exemption may present liability questions as discussed with POTWs, generally. Provisions in H.R. 1267 would provide CERCLA liability exemptions for regulated MS4s subject to a CWA permit.

Publicly Owned/Operated Municipal Solid Waste (MSW) Landfills

Publicly owned and operated municipal solid waste (MSW) landfills may be a source of PFAS due to the variety of commercial and industrial products disposed of and managed at those facilities, which themselves may contain PFAS-containing materials. These facilities are subject to state and federal requirements under RCRA, which established the federal program regulating solid and hazardous waste management.¹⁷⁵ Other federal or state permitting requirements may be applicable depending on the site-specific operations at the facility. MSW landfills may release PFAS into the environment through multiple pathways, potentially including unintended releases into soil, groundwater, and surface water or permitted releases from treated wastewater. The specific situations that could lead to PFAS being released may have implications for potential CERCLA liability.

RCRA Overview

In general, how waste must be managed under RCRA depends on whether it is a nonhazardous solid waste or a hazardous waste. RCRA Subtitle D establishes state and local governments as the primary planning, regulating, and implementing entities for the management of nonhazardous solid waste, such as household garbage and nonhazardous industrial solid waste.¹⁷⁶ If a waste is ultimately determined to be hazardous, then it may be subject to the requirements of RCRA Subtitle C and implementing regulations.¹⁷⁷ RCRA Subtitle C requirements establish federal “cradle-to-grave” requirements for management, transportation, treatment, and disposal of hazardous wastes. RCRA also authorizes hazardous waste cleanups (formerly known as “RCRA Corrective Action”) to require investigation and cleanup at permitted and nonpermitted treatment, storage, and disposal facilities.¹⁷⁸ Facility owners and operators subject to a RCRA cleanup

¹⁷³ For example, see Sudarshan Kurwadkar et al., “Per- and Polyfluoroalkyl Substances in Water and Wastewater: A Critical Review of Their Global Occurrence and Distribution,” *Science of the Total Environment*, vol. 809 (February 2022).

¹⁷⁴ Uhlmann, “PFAS Enforcement Discretion and Settlement Policy Under CERCLA,” p. 7.

¹⁷⁵ See EPA, “How Does RCRA Work?” updated September 1, 2026, <https://www.epa.gov/rcra/resource-conservation-and-recovery-act-rcra-overview#howdoesrcrawork>.

¹⁷⁶ See EPA, “Resource Conservation and Recovery Act (RCRA) Overview,” updated September 1, 2026, <https://www.epa.gov/rcra/resource-conservation-and-recovery-act-rcra-overview>.

¹⁷⁷ 40 C.F.R. Parts 260-268, Parts 270-279, and Part 124.

¹⁷⁸ See EPA, “Learn About Hazardous Waste Cleanups,” June 23, 2026, <https://www.epa.gov/hw/learn-about-hazardous-waste-cleanups>.

generally would be responsible for meeting federal requirements regardless of whether EPA or a delegated state oversees and enforces the requirements.

EPA has not listed any PFAS as RCRA hazardous waste that would be subject to regulatory requirements for hazardous waste storage, treatment, disposal, and cleanup actions to remediate environmental contamination. On February 8, 2024, EPA proposed to list nine PFAS as hazardous constituents under RCRA.¹⁷⁹ The presence of a RCRA hazardous constituent in a solid waste is one (but not the only) of multiple regulatory criteria for listing a solid waste as a hazardous waste under this statute. A hazardous constituent listing therefore would not constitute a hazardous waste listing. That rulemaking has not been finalized to date. Therefore, PFAS-containing wastes would generally meet the definition of a RCRA Subtitle D nonhazardous solid waste and would be subject to RCRA solid waste management requirements.¹⁸⁰

Remediation of Landfill Releases

In addition to other CERCLA hazardous substances, PFOA and PFOS (and other forms of PFAS) have been identified in varying concentrations and species in landfill leachate.¹⁸¹ Federal regulations define *leachate* as “a liquid that has passed through or emerged from solid waste and contains soluble, suspended, or miscible materials removed from such waste.”¹⁸² In addition to PFAS, leachate may include any number of other contaminants—some of which may be RCRA hazardous wastes or CERCLA hazardous substances—depending upon the nature of the wastes and factors that affect geochemical decomposition in the landfill. MSW landfill owners and operators are required to control releases through design, maintenance, monitoring, treatment, and disposal requirements.¹⁸³ As one such requirement, MSW landfill owners and operators are required to design and implement impermeable layers of clay and other engineered geomembrane liners to prevent leachate leaking into the shallow groundwater.¹⁸⁴

In some cases, unintentional releases of hazardous-substance-containing leachate may occur. If leachate were to migrate into groundwater or surface water warranting a response, enforcement actions under CERCLA or RCRA could be used to mitigate threats to human health and the environment. Whether actions may be warranted under these federal statutes would be a site-specific determination based on the potential risks of exposure and other criteria specific to each statute. In those instances, EPA and the relevant state would be responsible for implementing a response based on the nature of the release and respective authorities.

¹⁷⁹ EPA, “Listing of Specific PFAS as Hazardous Constituents,” 89 *Federal Register* 8606-8620, February 8, 2024.

¹⁸⁰ 42 U.S.C. §6903(27). Also see EPA, “Criteria for the Definition of Solid Waste and Solid and Hazardous Waste Exclusions,” updated March 20, 2026, <https://www.epa.gov/hw/criteria-definition-solid-waste-and-solid-and-hazardous-waste-exclusions>.

¹⁸¹ Johnsie R. Lang et al., “National Estimate of Per- and Polyfluoroalkyl Substance (PFAS) Release to U.S. Municipal Landfill Leachate,” *Environmental Science & Technology*, vol. 51, no. 4 (2017), pp. 2197-2205.

¹⁸² 40 C.F.R. §258.2.

¹⁸³ 42 U.S.C. §§6924-6925; the regulations implementing RCRA’s requirement to develop a hazardous waste permit program and standards for owners and operators of hazardous waste treatment, storage, and disposal facilities are found under 40 C.F.R. Parts 264 and 265.

¹⁸⁴ For these and other requirements, see 40 C.F.R. Part 258.

Landfill Wastewater Treatment

The management and disposal of leachate and other landfill wastewater is required at MSW landfills.¹⁸⁵ MSW landfills can include internal leachate collection systems in order to prevent excessive leachate accumulation. The collected leachate may be treated on-site or discharged to a wastewater treatment plant. The treatment and discharge of leachate would be subject to state and federal permitting requirements, which could include compliance with CWA National Pollutant Discharge Elimination System (NPDES) permits.¹⁸⁶

Some landfill operators and stakeholders may be concerned about liability under CERCLA associated with the management, treatment, and disposal of PFAS-containing leachate.¹⁸⁷ Some on-site MSW landfill leachate treatment systems may not necessarily be designed to or required to treat certain PFAS. This may result in PFAS being released to surface waters or discharged to a wastewater treatment plant. Such a situation could present potential CERCLA liability concerns for landfill owners and operators in the event of a downstream release of PFOA and PFOS and a CERCLA response. Similar to the issues discussed in the “Community Water Systems and Publicly Owned Treatment Works (POTWs)” section, releases of PFOA or PFOS, and any other CERCLA hazardous substances, from a landfill that is subject to a CWA discharge permit could be treated as a *federally permitted release* under Section 101(10) of CERCLA depending on the nature of the discharge and the terms of the permit.¹⁸⁸

In the 119th Congress, S.Amdt. 3363 would have provided CERCLA liability exemptions to *resource management entities*¹⁸⁹ for releases of covered PFAS if the release resulted from “the disposal or management of any residuals or byproduct of municipal solid waste in accordance with a permit issued under” the CWA, RCRA, or similar state or local law.

Publicly Owned Airports and Local Fire Departments

Certain PFAS have been included as ingredients in fire suppressants to produce fluorinated AFFF, a fire extinguishing agent designed to extinguish petroleum-based liquid fuel fires. DOD began using fluorinated AFFF at U.S. military installations and vessels in the 1970s because of its effectiveness as a Class B firefighting agent.¹⁹⁰ Civilian airports, federal agencies, state and local governments, and private entities that release these chemicals into the environment could be potentially liable as PRPs under CERCLA. Whether any particular entity may be liable under CERCLA depends on the site-specific circumstances regarding the release and whether a defense or exemption to liability under the statute would be available in a particular circumstance.

¹⁸⁵ See EPA, “Landfills Effluent Guidelines,” updated June 23, 2026, <https://www.epa.gov/eg/landfills-effluent-guidelines>.

¹⁸⁶ 33 U.S.C. §1342.

¹⁸⁷ For example, National Waste & Recycling Association and Solid Waste Association of North America, Docket ID No. EPA-HQ-OLEM-2019-0341; Designation of Perfluorooctanoic Acid (PFOA) and Perfluorooctanesulfonic Acid (PFOS) as CERCLA Hazardous Substances, November 7, 2022, <https://www.regulations.gov/comment/EPA-HQ-OLEM-2019-0341-0480>.

¹⁸⁸ 42 U.S.C. §9601(10).

¹⁸⁹ S.Amdt. 3363 defines a *resource management entity* as an owner or operator of a solid waste management facility as defined in Section 1004 of the Solid Waste Disposal Act (42 U.S.C. §6903) or a facility that processes compost for sale or distribution to the public.

¹⁹⁰ U.S. Department of Defense (DOD), *Aqueous Film Forming Foam: Report to Congress*, October 2017, https://www.acq.osd.mil/eie/eeer/ecc/pfas/docs/reports/Aqueous-Film-Forming-FoamAFFF-Report-to-Congress_DENIX.PDF.

The Federal Aviation Administration (FAA) has used the U.S. military specification for AFFF as part of its criteria for civilian airport operators to demonstrate compliance with certification requirements for Class B fire extinguishing agents.¹⁹¹ Section 332 of the FAA Reauthorization Act of 2018 directed FAA to stop recommending the use of fluorinated AFFF for civilian airport certification no later than three years from the date of enactment (October 5, 2018).¹⁹² While Section 332 of P.L. 115-254 does not require civilian airport operators to use fluorinated AFFF to meet their FAA certification requirements under 14 C.F.R. Part 139, it does not prohibit them from doing so.

Legislation has been introduced, but not enacted, in prior Congresses to exempt civilian airports from CERCLA liability for the release of PFAS from the use of AFFF to meet FAA certification requirements under 14 C.F.R. Part 139.¹⁹³ In the 119th Congress, S.Amdt. 3363 would have provided CERCLA liability exemptions to airport sponsors who released PFAS from the use of AFFF as required by FAA's certification requirements under 14 C.F.R. Part 139 and carried out in accordance with FAA standards and guidance on the use of that substance.¹⁹⁴ This exemption would have applied only to airports subject to FAA certification. The exemption would not have been available if the entity

acted with gross negligence or willful misconduct in the discharge of the covered perfluoroalkyl or polyfluoroalkyl substance; or continues to use an aqueous film forming foam agent in the fire suppression system of the fire suppression entity on or after the date that is 5 years after the date on which approved engineering standards were updated to no longer require the use of an aqueous film forming foam; or a sponsor if the sponsor acted with gross negligence or willful misconduct in the use of an aqueous film forming foam.¹⁹⁵

Farms Where Biosolids Are Applied to the Land

Biosolids, also known as treated sewage sludge, are the solid components derived from the treatment of municipal and industrial wastewater.¹⁹⁶ Biosolids may contain varying degrees of the types and concentrations of PFAS, depending upon the composition of PFAS in the upstream sources flowing into the wastewater treatment plant. The land application of biosolids as a nutrient-rich fertilizer is a common practice for these materials. Land application can often be preferable to other disposal options, such as landfilling and incineration, due to the beneficial reuse of the biosolids as an agricultural fertilizer.¹⁹⁷

PFAS may accumulate in biosolids during municipal wastewater treatment operations. Subsequently, land-applied PFAS-containing biosolids may have the potential to release PFAS into underlying soils and groundwater.¹⁹⁸

¹⁹¹ 14 C.F.R. Part 134.

¹⁹² See P.L. 115-254.

¹⁹³ For example, see H.R. 2467, PFAS Action Act of 2021, as passed by the House on July 21, 2021.

¹⁹⁴ S.Amdt. 3363.

¹⁹⁵ S.Amdt. 3363.

¹⁹⁶ EPA uses the term *biosolids* to mean sewage sludge that has been treated to meet the agency's regulatory requirements and is intended to be land applied as a soil conditioner or fertilizer. EPA, "Biosolids," July 7, 2026, <https://www.epa.gov/biosolids>.

¹⁹⁷ EPA, *Biosolids Technology Fact Sheet: Land Application of Biosolids*, EPA 832-F-00-064, September 2000, <https://www.epa.gov/sites/default/files/2018-11/documents/land-application-biosolids-factsheet.pdf>.

¹⁹⁸ For example, see G. R. Johnson, "PFAS in Soil and Groundwater Following Historical Land Application of Biosolids," *Water Research*, vol. 211 (January 2022).

Section 101(22) of CERCLA defines the term *release* in a manner that excludes the “normal application of fertilizer” and therefore excludes such activity from liability under Section 107 of CERCLA for releases of hazardous substances into the environment.¹⁹⁹

Agricultural operators therefore would generally not be liable under CERCLA for releases of PFOA and PFOS from the use of biosolids as fertilizers if used in “normal” conditions for the intended purpose of nutrient enrichment of soil. Improper application of a fertilizer potentially could result in liability under CERCLA if such action released a hazardous substance and costs to carry out response actions were warranted from a risk standpoint. As with other situations, the mere release of PFOA and PFOS from biosolids alone would not necessarily trigger any liability under CERCLA.

The congressional intent of the fertilizer exclusion from CERCLA is expressed in the legislative history of the statute. Much of the language in CERCLA originated from S. 1480 in the 96th Congress, including the fertilizer exclusion. In its report on this bill, the Senate Committee on Environment and Public Works (EPW) commented on its intended meaning of the normal application of fertilizer, writing, “The term normal field application means the act of putting fertilizer on crops or cropland, and does not mean any dumping, spilling, or emitting, whether accidental or intentional, in any other place or of significantly greater concentrations or amounts than are beneficial to crops.”²⁰⁰

In the 118th Congress, the Agriculture PFAS Liability Protection Act of 2023 (S. 1427) was introduced, but not enacted, to more broadly exempt agricultural operators from CERCLA liability for releases of PFAS. This bill would have exempted persons engaged in the production or harvesting of agricultural products from CERCLA liability, except in situations in which the person “acted with gross negligence or willful misconduct in the discharge, disposal, management, conveyance, or storage” of a PFAS listed as a CERCLA hazardous substance.²⁰¹

In the 119th Congress, S.Amdt. 3363 would have provided a CERCLA liability exemption for *agricultural producers*²⁰² from the release of a covered PFAS. Additionally, S.Amdt. 3363 would have provided a CERCLA liability exemption to *resource management entities*²⁰³ if the release resulted from

- the disposal or management of any residuals or byproduct of municipal solid waste in accordance with a permit issued under the CWA,²⁰⁴ RCRA, or similar state or local authority;
- the disposal or management of biosolids consistent with Section 405 of the CWA;²⁰⁵ or
- the application or processing of compost in accordance with state law.

¹⁹⁹ 42 U.S.C. §§9601(22), 9607.

²⁰⁰ U.S. Congress, Senate Environment and Public Works Committee, *Environmental Emergency Response Act*, S. Rept. 96-848, 96th Cong., 2nd sess., July 11, 1980, p. 46.

²⁰¹ See the Agriculture PFAS Liability Protection Act of 2023 (S. 1427), introduced in the 118th Congress.

²⁰² As defined in Section 207 of the Agricultural Marketing Act of 1946 (7 U.S.C. §1626.7).

²⁰³ S.Amdt. 3363 defines a *resource management entity* as “a solid waste management facility (as defined in section 1004 of the Solid Waste Disposal Act (42 U.S.C. 6903)); or (B) a facility that processes compost for sale or distribution to the public.”

²⁰⁴ To date, EPA has not established numerical limits, monitoring, or reporting requirements for PFAS in biosolids. For more information, see CRS In Focus IF12148, *Regulating PFAS Under the Clean Water Act*, by Laura Gatz.

²⁰⁵ 33 U.S.C. §1345.

Liability Policy Considerations

Over the past several Congresses, Congress has debated whether and how broadly to provide liability exemptions under CERCLA for releases of PFAS by certain categories of entities.²⁰⁶ As discussed previously, in recent Congresses, bills have been introduced, but not enacted, that would have provided liability exemptions for certain entities. Some stakeholders have supported providing one or more statutory exemptions or other actions to potentially limit CERCLA liability for PFAS for certain categories of entities that may not have manufactured or used PFAS as part of their operations.²⁰⁷ Others may support liability relief for past releases of PFAS into the environment due to the use of PFAS-containing materials, such as AFFF, to meet certain federal requirements. Among other concerns, stakeholders may argue that if identified as a PRP, these responsible entities would need to expend significant resources defending themselves from EPA enforcement or from other PRPs pursuing contribution claims.²⁰⁸ Additionally, they may argue that EPA's PFAS enforcement discretion policy is nonbinding, and that a statutory liability exemption could provide additional certainty to covered entities regarding their liability and potential litigation costs.

Other stakeholders have argued that exemptions from and defenses to CERCLA liability in current law are sufficient to protect certain entities in certain situations where appropriate.²⁰⁹ Congress has amended CERCLA to limit or remove liability for certain categories of parties or situations that may not have been involved in actions that resulted in contamination, that may have contributed only very small quantities to a contaminated site, or whose conduct Congress did not wish to discourage. Under CERCLA, situations where a liability exemption may be applicable may include

- response action contractors who only perform the work to clean up a contaminated site but who did not cause or otherwise contribute to the contamination;
- state and local governments that acquired contaminated property involuntarily through bankruptcy, tax delinquency, abandonment, or other circumstances and did not cause or otherwise contribute to the contamination;
- persons who hold a contaminated property only in a fiduciary capacity;
- financial lenders who acquire financial interests or ownership of a contaminated property through foreclosure;

²⁰⁶ The 119th Congress held committee hearings in the House and Senate to discuss these matters. See U.S. Congress, House Energy and Commerce Committee, Environment Subcommittee, *Examining the Impact of EPA's CERCLA Designation for Two PFAS Chemistries and Potential Policy Responses to Superfund Liability Concerns*, 119th Cong., 1st sess., December 18, 2025; and U.S. Congress, Senate Environment and Public Works Committee, *Hearing to Examine the Future of PFAS Cleanup and Disposal Policy*, 119th Cong., 1st sess., November 19, 2025.

²⁰⁷ For example, see American Water Works Association, "AWWA Extends Support for Bipartisan Introduction of Water Systems PFAS Liability Protection Act," press release, February 12, 2025, <https://www.awwa.org/AWWA-Articles/awwa-extends-support-for-bipartisan-introduction-of-water-systems-pfas-liability-protection-act/>.

²⁰⁸ For example, Water Coalition Against PFAS, Public Comment on Proposed Designation of Perfluorooctanoic Acid (PFOA) and Perfluorooctanesulfonic Acid (PFOS) as CERCLA Hazardous Substances; Docket ID No. EPA-HQ-OLEM-2019-0341, EPA-HQ-OLEM-2019-0341-0407, November 9, 2022, <https://www.regulations.gov/comment/EPA-HQ-OLEM-2019-0341-0407>.

²⁰⁹ For example, EWG, *Designation of PFOA/PFOS as CERCLA Hazardous Substances EPA-HQ-OLEM-2019-0341*, EPA-HQ-OLEM-2019-0341-0552, November 9, 2022, <https://www.regulations.gov/comment/EPA-HQ-OLEM-2019-0341-0552>.

- persons who contributed only very small quantities of waste or only municipal solid (i.e., nonhazardous) waste to a site;
- innocent landowners who purchased a property without knowledge of existing contamination, with respect to the third-party defense noted above;
- other innocent owners of property that became contaminated only through migration from a contiguous property where the initial release occurred; and
- bona fide prospective purchasers who otherwise may be hesitant to acquire a property on which contamination is known or suspected to be present because of the potential liability for cleanup upon acquiring ownership.²¹⁰

Whether any exemption or defense to liability would be applicable, would be based on site- and fact-specific situations.

As a general matter, limiting which entities EPA could pursue as PRPs for cleanup costs could potentially shift additional funding needs to the Superfund Trust Fund. As mentioned previously, most of the funding for the Superfund program is sourced from revenues from the Superfund excise taxes.²¹¹ Whether these excise tax revenues would be sufficient to meet potential additional funding needs due to the enactment of a PFAS exemption would depend on various factors, such as the annual excise tax revenues collected, total funding needs across all NPL sites, and the scope and extent of federal funding necessary to address PFAS at sites not funded by PRPs.

Congress may also consider amending definitions, terms, or conditions in CERCLA to clarify policy intent for these specific situations. For example, Congress could consider amending or modifying the definitions of *the normal application of fertilizer* or *federally permitted release* to clarify how those, or other terms, would be applied in specific situations related to PFAS. Finally, as with any policy debate or decision, Congress could maintain the status quo.

Defense Environmental Restoration Program

DOD has responded to releases of PFAS from the use of AFFF at active and decommissioned U.S. military installations under the Defense Environmental Restoration Program (DERP). DOD has been remediating environmental contamination, unexploded ordnance (UXO), and certain other hazards under DERP for years or even decades at many of these same U.S. military installations. Detections of PFOA or PFOS in groundwater are a more recent development that adds to existing remediation challenges and funding needs.

Background and Scope of the Program

The scope of DERP includes the performance of the cleanup of military facilities in the United States that are or were under the jurisdiction of the Secretary of Defense and owned by, leased to, or otherwise possessed by the United States at the time the contamination occurred. As a result, it may include both active and decommissioned military facilities.²¹² The inclusion of decommissioned facilities within the program is consistent with the scope of liability under Section 107 of CERCLA, under which DOD can be held liable for cleanup as the past owner and operator of those facilities.

²¹⁰ CRS Report R48630, *Federal Environmental Remediation Under the Comprehensive Environmental Response, Compensation, and Liability Act (CERCLA), a.k.a. "the Superfund Law"*, by Lance N. Larson.

²¹¹ See section "Funding for the Superfund Program."

²¹² 10 U.S.C. §§2701 et seq.

DOD established an Installation Restoration Program in 1975 as a pilot initiative to investigate and remediate hazardous wastes at U.S. military facilities.²¹³ Section 211 of the Superfund Amendments and Reauthorization Act of 1986 (SARA)²¹⁴ authorized DERP for DOD to carry out its CERCLA responsibilities and certain other activities that are broader in scope than the Installation Restoration Program pilot initiative. SARA Section 211 authorized this program to remediate environmental contamination, UXO, and discarded military munitions at U.S. military facilities in the United States.²¹⁵ Additionally, as added by SARA in 1986, Section 120 of CERCLA clarifies that liability and other requirements of the statute apply to federal departments and agencies to the same extent as nonfederal entities.²¹⁶

Oversight Roles of EPA and States

Section 211 of SARA requires DOD to consult with EPA in implementing DERP and to carry out response actions under the program in accordance with CERCLA.²¹⁷ Section 120 of CERCLA authorizes a framework for EPA to oversee the investigation and remediation of sites by DOD under this program if EPA has designated the site on the NPL.²¹⁸ Some military installations have been listed on the NPL. The designation of NPL sites is based on an assessment of potential risks to human health and the environment under the Hazard Ranking System or certain other mechanisms authorized in Section 105 of CERCLA.²¹⁹ As a matter of policy, EPA seeks the concurrence of the state in which a site is located prior to making a final NPL listing decision.²²⁰ The deletion of a site from the NPL is subject to state concurrence, pursuant to Section 121(f) of CERCLA.²²¹ States have the lead oversight role under this program at DOD sites that are not on the NPL.

PFAS Site Investigations and Remediation

DOD has been investigating known or suspected PFAS releases under DERP to determine whether actions are warranted to protect human health and the environment, pursuant to CERCLA and other applicable federal or state laws. As of March 31, 2025, DOD reported it had completed the Preliminary Assessment/Site Investigation (PA/SI)²²² for 703 installations out of the 723 active military installations, Base Realignment and Closure (BRAC) locations, National Guard facilities, and Formerly Used Defense Sites (FUDS) sites identified for assessment of

²¹³ See DOD, *Defense Environmental Programs Annual Report to Congress for FY2019*, April 2020, “Environmental Restoration Program,” p. 3, <https://www.denix.osd.mil/arc/dep-arc-fy-2019/index.html>.

²¹⁴ Superfund Amendments and Reauthorization Act of 1986 (P.L. 99-499).

²¹⁵ 10 U.S.C. §2701. Defense Environmental Restoration Program (DERP) authorities in whole are codified at 10 U.S.C. §§2700-2711.

²¹⁶ 42 U.S.C. §9620.

²¹⁷ 10 U.S.C. §2701.

²¹⁸ 42 U.S.C. §9620(e).

²¹⁹ 42 U.S.C. §9605. For information on the NPL listing process, see EPA, “National Priorities List (NPL) Site Listing Process,” September 22, 2025, <https://www.epa.gov/superfund/about-superfund-cleanup-process#npl>.

²²⁰ EPA, Office of Solid Waste and Emergency Response (since renamed the Office of Land and Emergency Management), *Coordinating with the States on National Priorities List Decisions*, November 14, 1996, <https://semsub.epa.gov/work/HQ/174023.pdf>.

²²¹ 42 U.S.C. §9621(f).

²²² A preliminary inspection and site investigation are formal parts of the CERCLA process. For more information, see EPA, “Superfund Site Assessment Activities,” September 22, 2025, <https://www.epa.gov/superfund/superfund-site-assessment-activities>.

PFAS releases.²²³ Of those 703 installations, DOD reported 573 installations that have proceeded or are planned to proceed to the next step in the CERCLA process, the Remedial Investigation/Feasibility Study (RI/FS); 117 installations where DOD has determined no further action is needed; and 13 installations where additional work was combined with work being conducted at another installation or by another federal agency.²²⁴

The estimated timeline to complete each step in the CERCLA process varies by the current status of the investigation, the scope and extent of the release, and remedial actions selected. DOD provides estimated timelines to start or complete the PA/SI and RI/FS stages of the CERCLA process.²²⁵ DOD has not provided any estimated timelines for dates of the completion of remediation for any installation to date.

As the CERCLA process continues at a particular installation, DOD is authorized to take interim or removal actions to address situations that could present an imminent risk to human health.²²⁶ DOD has taken interim actions to respond to potential exposures to PFAS at eligible properties where PFAS concentrations exceed thresholds by providing alternative water supplies.²²⁷ DOD reports a list of installations where interim actions are currently in progress.²²⁸

DOD Appropriations Accounts

The availability of funding for DOD to take CERCLA response actions under DERP is subject to annual appropriations through several DOD accounts. Five Environmental Restoration accounts in the Department of Defense annual appropriations bill fund the responsibilities of DOD under DERP at current and certain former U.S. military facilities in the United States.²²⁹ Each account funds a different inventory of sites.

1. Environmental Restoration, Air Force
2. Environmental Restoration, Army
3. Environmental Restoration, Navy
4. Environmental Restoration, Defense-Wide
5. Environmental Restoration, Formerly Used Defense Sites (FUDS)

²²³ DOD, Office of the Under Secretary of Defense for Acquisition and Sustainment, *Report on Department of Defense Assessment and Remediation Plan*, September 2025, <https://www.acq.osd.mil/eie/eer/ecc/pfas/docs/reports/DoD%20Assessment%20and%20Remediation%20Plan%20508.pdf>.

²²⁴ DOD, Office of the Under Secretary of Defense for Acquisition and Sustainment, *Report on Department of Defense Assessment and Remediation Plan*, September 2025, p. 2, <https://www.acq.osd.mil/eie/eer/ecc/pfas/docs/reports/DoD%20Assessment%20and%20Remediation%20Plan%20508.pdf>.

²²⁵ DOD, *Progress at the 723 Installations Being Assessed for PFAS Use or Potential Release*, September 30, 2025, <https://www.acq.osd.mil/eie/eer/ecc/pfas/docs/data/DoW-PFAS-ProgressSept3025.pdf>.

²²⁶ 10 U.S.C. §2701(c).

²²⁷ DOD, “Prioritization of Department of Defense Cleanup Actions to Implement the Federal Drinking Water Standards for Per- and Polyfluoroalkyl Substances Under the Defense Environmental Restoration Program,” September 3, 2024, pp. 2-3, <https://www.acq.osd.mil/eie/eer/ecc/pfas/docs/policies/epa-mcl-implementation-memo.pdf>; and DOD, “Clarifying Guidance for Taking Interim Actions to Address Releases of Perfluorooctane Sulfonic Acid and Perfluorooctanoic Acid from Department of War Installations or Locations Impacting Private Drinking Water,” July 6, 2026, https://www.acq.osd.mil/eie/eer/ecc/pfas/docs/policies/Sec317_Guidance.pdf.

²²⁸ DOD, *Installations Where PFAS Interim Actions are Currently in Progress*, September 2025, <https://www.acq.osd.mil/eie/eer/ecc/pfas/docs/data/DoW-PFAS-ProgressSept3025.pdf>.

²²⁹ For example, see the House version of the Department of Defense Appropriations Act, 2027 (H.R. 9495): Air Force, p. 21; Army, p. 19; Navy, p. 20; Defense-wide, p. 21; and Formerly Used Defense Sites (FUDS), p. 22.

The first four accounts fund environmental remediation at current U.S. military facilities under the respective jurisdiction of each military department or defense agency. These accounts also fund environmental remediation at some properties decommissioned under authorities separate from a BRAC process.²³⁰ The FUDS account funds environmental remediation at properties that DOD and its predecessors owned or leased prior to 1986. Many of these FUDS sites served national defense purposes during World War I and World War II eras. DOD delegated the remediation of FUDS to the U.S. Army Corps of Engineers.²³¹

Environmental remediation at U.S. military facilities decommissioned under a BRAC process is funded from the Defense Base Closure account in the Military Construction, Veterans Affairs, and Related Agencies annual appropriations bill.²³² Congress has authorized five consolidated “rounds” of military base closures and realignments in 1988, 1991, 1993, 1995, and 2005.²³³ Proceeds from the sale or lease of BRAC properties augment annual appropriations to the Defense Base Closure account. This account also funds other environmental compliance requirements and maintenance at BRAC properties.

Cost Estimates and Appropriations

Through FY2025, DOD estimated that total actual obligations were \$3.3 billion (in current dollars) for investigating and remediating PFAS releases at active U.S. military installations, closed BRAC sites, FUDS, and National Guard facilities combined.²³⁴ DOD estimated \$10.2 billion in additional funding would be necessary to complete these actions at all eligible sites from the end of FY2024 into the future.²³⁵ These costs are subject to change as information is ascertained during site investigations and the selection of remedial actions. Funding for DOD to carry out its statutory obligation to respond to PFAS releases is subject to annual appropriations, and DOD prioritizes these funds among eligible sites across the United States. In its September 2025 report, DOD observed that its estimates involve some uncertainty:

DoD does not track funding by contaminant, and the data in the appendix represents the DoD Components’ best estimates of the funding to be obligated for investigations and cleanup of DoD releases of PFAS. DoD expects this estimate to increase as the DoD Components complete ongoing investigations and learn more about the extent of cleanup required. Additionally, the timeline for cleanup will vary significantly depending on the amount and extent of PFAS at a specific location, as well as other site-specific characteristics that are determined during the RI/FS phase. The Department cannot estimate this timeline and therefore cannot estimate the complete cost of cleanup until this information is known. Further, DoD anticipates that the estimate will increase as it

²³⁰ For more information about the base realignment and closure (BRAC) process, see CRS Report R45705, *Base Closure and Realignment (BRAC): Background and Issues for Congress*, by Christopher T. Mann.

²³¹ U.S. Army Corps of Engineers, *Environmental Quality: Formerly Used Defense Sites (FUDS) Program Policy*, ER 200-3-1, May 10, 2004, https://www.publications.usace.army.mil/Portals/76/Publications/EngineerRegulations/ER_200-3-1.pdf.

²³² Pursuant to 10 U.S.C. §2703(h), the Defense Base Closure account is the sole source of federal funds for environmental remediation at properties that are decommissioned under a BRAC process.

²³³ For information on the BRAC process, see CRS Report R45705, *Base Closure and Realignment (BRAC): Background and Issues for Congress*, by Christopher T. Mann.

²³⁴ DOD, *Progress at the 723 Installations Being Assessed for PFAS Use or Potential Release*, September 30, 2025, <https://www.acq.osd.mil/eie/ee/ecc/pfas/docs/data/DoW-PFAS-ProgressSept3025.pdf>.

²³⁵ DOD, *Report on Department of Defense Assessment and Remediation Plan, Office of the Under Secretary of Defense*, September 2025, p. 36, <https://www.acq.osd.mil/eie/ee/ecc/pfas/docs/reports/DoD%20Assessment%20and%20Remediation%20Plan%20508.pdf>.

continues to incorporate EPA's PFAS MCLs into its ongoing cleanups. The DoD Components will plan and program for these requirements as they are defined.²³⁶

Identifying past costs incurred for investigating and remediating PFAS releases at DOD sites also presents challenges. The U.S. Government Accountability Office (GAO) issued a report in June 2021 that examined various challenges in estimating these costs.²³⁷ As a practical matter, contamination in groundwater or other environmental media may consist of varying chemical constituents depending on past activities that may have released multiple chemicals into the environment at the same site. Actions to investigate and remediate contamination at such sites may address multiple constituents at the same time and does not necessarily focus on just one chemical. For these reasons, it may be challenging to determine the total costs attributable to remediation of PFAS in isolation.

Figure 1 presents a four-year history of separate enacted appropriations and the President's FY2027 budget request for PFAS activities under each Environmental Restoration account.²³⁸

Figure 1 depicts the funding trend from \$404 million in FY2023 to \$255 million in FY2026 for these accounts combined, in nominal dollars. The President's FY2027 budget request for these DOD accounts would decrease the combined amount for these accounts to \$142 million. Defense Base Closure account funding was only included in the FY2027 budget request and was not included in **Figure 1**. The Defense Base Closure account for PFAS-related activities at BRAC sites was \$108 million for FY2025 actuals, \$161 million for FY2026 enacted, and \$64 million for the FY2027 request.²³⁹

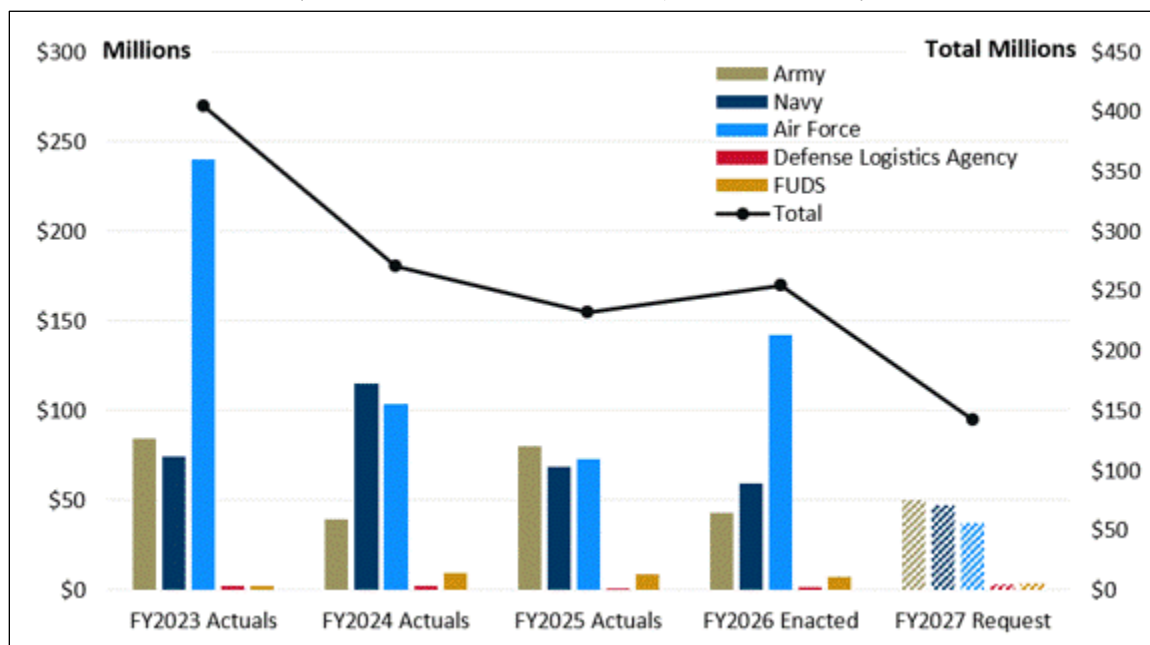
²³⁶ DOD, *Report on Department of Defense Assessment and Remediation Plan*, Office of the Under Secretary of Defense, September 2025, p. 4, <https://www.acq.osd.mil/eie/eeer/ecc/pfas/docs/reports/DoD%20Assessment%20and%20Remediation%20Plan%20508.pdf>.

²³⁷ U.S. Government Accountability Office (GAO), *Firefighting Foam Chemicals: DOD Is Investigating PFAS and Responding to Contamination, but Should Report More Cost Information*, GAO-21-421, June 22, 2021, <https://www.gao.gov/products/gao-21-421>.

²³⁸ Congress has directed DOD to submit separate budget requests for PFAS-related funding activities. These requests include other funding in addition to the Environmental Restoration Accounts. For example, see DOD, *Per- and Polyfluoroalkyl Substances Budget Justification Report*, Pursuant to S.Rept. 119-52, p. 45, accompanying S. 2572, the Department of Defense Appropriations Bill, 2026, May 2026, <https://www.acq.osd.mil/eie/eeer/ecc/pfas/docs/reports/Per-and%20Polyfluoroalkyl-Substances-Budget.pdf>.

²³⁹ DOD, *FY 2027 Budget Justification Report for Funding Related to Per- and Polyfluoroalkyl Substances*, April 2026, p. 5, <https://www.acq.osd.mil/eie/eeer/ecc/pfas/docs/reports/FY2027-Budget-Justification-Report-for-Funding-Related-to-PFAS.pdf>.

Figure I. Department of Defense (DOD) Separate Budget Justification Materials for Per- and Polyfluoroalkyl Substances (PFAS) Under Environmental Restoration Accounts: Actual and Enacted Appropriations FY2023 to FY2026, and the FY2027 Budget Request
(millions of nominal dollars not adjusted for inflation)



Source: Prepared by the Congressional Research Service. Data for the FY2025 actual, FY2026 enacted, and FY2027 request are from the DOD, *Per- and Polyfluoroalkyl Substances Budget Justification Report*, Pursuant to S.Rept. 119-52, p. 45, accompanying S. 2572, the Department of Defense Appropriations Bill, 2026, May 2026, <https://www.acq.osd.mil/eie/eeer/ecc/pfas/docs/reports/Per-and%20Polyfluoroalkyl-Substances-Budget.pdf>; data for FY2024 are from DOD, *FY 2026 Budget Justification Report for Funding Related to Per- and Polyfluoroalkyl Substances*, Pursuant to Section 332 of the National Defense Authorization Act for Fiscal Year 2024, August 2025, <https://www.acq.osd.mil/eie/eeer/ecc/pfas/docs/reports/FY26%20PFAS%20Budget%20Justification%20Report.pdf>; data for FY2023 are from DOD, *FY 2025 Budget Justification Report for Funding Related to Per- and Polyfluoroalkyl Substances*, Pursuant to Section 332 of the National Defense Authorization Act for Fiscal Year 2024, September 2024, <https://www.acq.osd.mil/eie/eeer/ecc/pfas/docs/reports/PFAS-Budget-Justification.pdf>.

Notes: Formerly Used Defense Sites (FUDS) are those that were decommissioned prior to 1986. These data do not show funding for Defense Base Closure accounts for environmental remediation, other environmental compliance, and maintenance at properties decommissioned under a Base Realignment and Closure (BRAC) process since 1988. The funding for the Defense Base Closure account for PFAS-related activities was \$108 million for FY2025 (actuals), \$161 million for FY2026 enacted, and \$64 million for the FY2027 request.²⁴⁰ Since September 5, 2025, DOD has been “using a secondary Department of War designation” under Executive Order 14347. See CRS In Focus IF10543, *Defense Primer: The Department of Defense*, coordinated by Michael J. Vassalotti.

DOD’s estimate of \$10.2 billion in future costs for responding to PFAS releases is 19.1% of its total estimate of funding needs for investigating and remediating all contamination and other hazards at eligible sites covered under DERP. As of the end of FY2025, DOD estimated a total of \$53.3 billion in future costs to complete the investigation and remediation of all eligible sites

²⁴⁰ DOD, *FY 2027 Budget Justification Report for Funding Related to Per- and Polyfluoroalkyl Substances*, April 2026, p. 5, <https://www.acq.osd.mil/eie/eeer/ecc/pfas/docs/reports/FY2027-Budget-Justification-Report-for-Funding-Related-to-PFAS.pdf>.

under DERP.²⁴¹ Of this amount, \$34.4 billion is primarily attributed to contamination from releases of hazardous substances, pollutants, or contaminants into the environment, and \$18.9 billion is attributed to UXO and other munitions hazards at nonoperational ranges and disposal sites.²⁴²

Congressional Considerations for Appropriations and Oversight of PFAS Remediation at Military Facilities

The pace and adequacy of funding to address PFAS at U.S. military facilities has been an issue.²⁴³ Risks to human health, safety, and the environment at sites where remediation is not complete vary depending on the nature of the contamination and the potential for exposure. The CERCLA remediation process that applies to DERP is based on mitigating potentially harmful levels of exposure to protect human health and the environment. DOD is responsible for prioritizing annual appropriations from the Environmental Restoration accounts and the Defense Base Closure account to respond to potential risks of PFAS at eligible sites under DERP. Funding needs for PFAS remediation at current U.S. military facilities may vary depending on the potential routes of exposure to contamination on-site, or off-site if contamination migrates beyond the facility boundary. Active and former military installations may vary widely with the procurement and use of PFAS containing AFFF and other materials. The remediation of BRAC properties transferred out of DOD jurisdiction may present similar remediation challenges that also could affect the feasibility of land uses for civilian redevelopment.

Annual and total funding needs to address PFAS environmental obligations under DERP at DOD sites remains a policy consideration for Congress. The availability of funding to investigate and remediate PFAS at these sites would depend on annual appropriations. Funding needs for a particular installation are not known at the onset of the CERCLA investigation and would depend on the investigation results and future remediation decisions. These funding needs would arise over a span of years or decades among individual sites to carry out the CERCLA site investigation and remediation process, including long-term operations, maintenance, and monitoring once remedial actions are in place at sites where such actions are deemed warranted to protect human health and the environment. While sufficient annual appropriations would be necessary for DOD to carry out its responsibilities to address PFAS, funding in excess of requests may not necessarily expedite the investigation and remediation at a particular site. Other technical and administrative factors may limit the rate of completion of the environmental remediation process, such as time constraints to complete necessary sampling and analysis to understand site-specific complexities.

²⁴¹ DOD, *Agency Financial Report: Fiscal Year 2025*, “Note 14. Environmental and Disposal Liabilities,” December 18, 2025, p. 159, https://comptroller.war.gov/Portals/45/Documents/afr/fy2025/DoD_FY25_Agency_Financial_Report.pdf.

²⁴² DOD, *Agency Financial Report: Fiscal Year 2025*, “Note 14. Environmental and Disposal Liabilities,” December 18, 2025, p. 159, https://comptroller.war.gov/Portals/45/Documents/afr/fy2025/DoD_FY25_Agency_Financial_Report.pdf.

²⁴³ For example, see “Bipartisan Anger Grows at Pentagon’s Delayed ‘Forever Chemicals’ Cleanups,” *New York Times*, July 30, 2026; and Rep. Kristen McDonald Rivet, “Rep. McDonald Rivet, PFAS Task Force Call on Pentagon to Accelerate PFAS Cleanup Near Military Facilities,” press release, July 17, 2026, <https://mcdonaldrivet.house.gov/media/press-releases/rep-mcdonald-rivet-pfas-task-force-call-pentagon-accelerate-pfas-cleanup-near>.

The status, pace, and reporting of DOD efforts to address PFAS present oversight issues for Congress. In response to congressional direction in various NDAA's and appropriations bills, DOD also has issued a series of reports on these and other remedial activities published from October 2017 through July 2026.²⁴⁴ Additionally, as required by the FY2024 NDAA,²⁴⁵ in 2025 GAO recommended “that DOD provide additional information to Congress on total fiscal exposure related to PFAS investigation and cleanup and a detailed explanation and examples of changing key cost drivers.”²⁴⁶ According to GAO, DOD partially concurred with that recommendation and has taken steps to implement it that “meet the intent of th[e] recommendation.”²⁴⁷ As it has done previously, Congress could choose to add additional requirements for this program or conduct additional oversight.

The adequacy of federal resources and availability of scientific information to research and develop technologies or methods to enhance site inspections or remediation under DERP remains a policy consideration for Congress. The extent to which any technology or methods could improve cost efficiency, expedite, or improve efficacy for any site characterization or remediation of PFAS would depend on how the technologies employed could improve upon existing technologies. Congress has provided funding to DOD’s Strategic Environmental Research and Development Program (SERDP) and Environmental Security Technology Certification Program (ESTCP) to research and develop solutions to a range of issues related to PFAS, including potential treatment technologies, understanding impacts to ecosystems, improved site characterization methods, and alternatives to fluorinated AFFF.²⁴⁸ Congress may choose to adjust appropriations or modify the direction of these efforts.

²⁴⁴ DOD, *PFAS Task Force, Reports and Briefings*, 2026, <https://www.acq.osd.mil/eie/ee/ecc/pfas/tf/reports.html>.

²⁴⁵ P.L. 118-31.

²⁴⁶ GAO, *Persistent Chemicals: DOD Needs to Provide Congress More Information on Costs Associated with Addressing PFAS*, GAO-25-107401, February 25, 2025, <https://www.gao.gov/products/gao-25-107401>.

²⁴⁷ In January 2026, DOD transmitted the FY2024 *Defense Environmental Program Annual Report* to Congress. According to GAO, the report included

a Cost-to-Complete estimate, which provided past and current fiscal year costs as well as estimated future costs for investigations and cleanup of DOD releases of PFAS. Moreover, the department outlines additional details on how changing assumptions about key cost drivers, such as the concentration and extent of the PFAS release, characteristics of the soil and groundwater flow, and potential human exposure pathways, can vary significantly from site to site across the country, and that variations in any or all of these factors could change an individual site’s cost estimate by an order of magnitude.

GAO, *Persistent Chemicals: DOD Needs to Provide Congress More Information on Costs Associated with Addressing PFAS*, GAO-25-107401, February 25, 2025, <https://www.gao.gov/products/gao-25-107401>.

²⁴⁸ See Strategic Environmental Research and Development Program and Environmental Security Technology Certification Program, *PFAS*, <https://serdp-estcp.mil/focusareas/e18ec5da-d0de-47da-99f9-a07328558149/pfas>: “We have funded hundreds of projects that have quickly and significantly advanced our understanding and management of PFAS in the environment by evaluating a range of potential treatment technologies, ecotoxicological effects, and improved site characterization.”

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